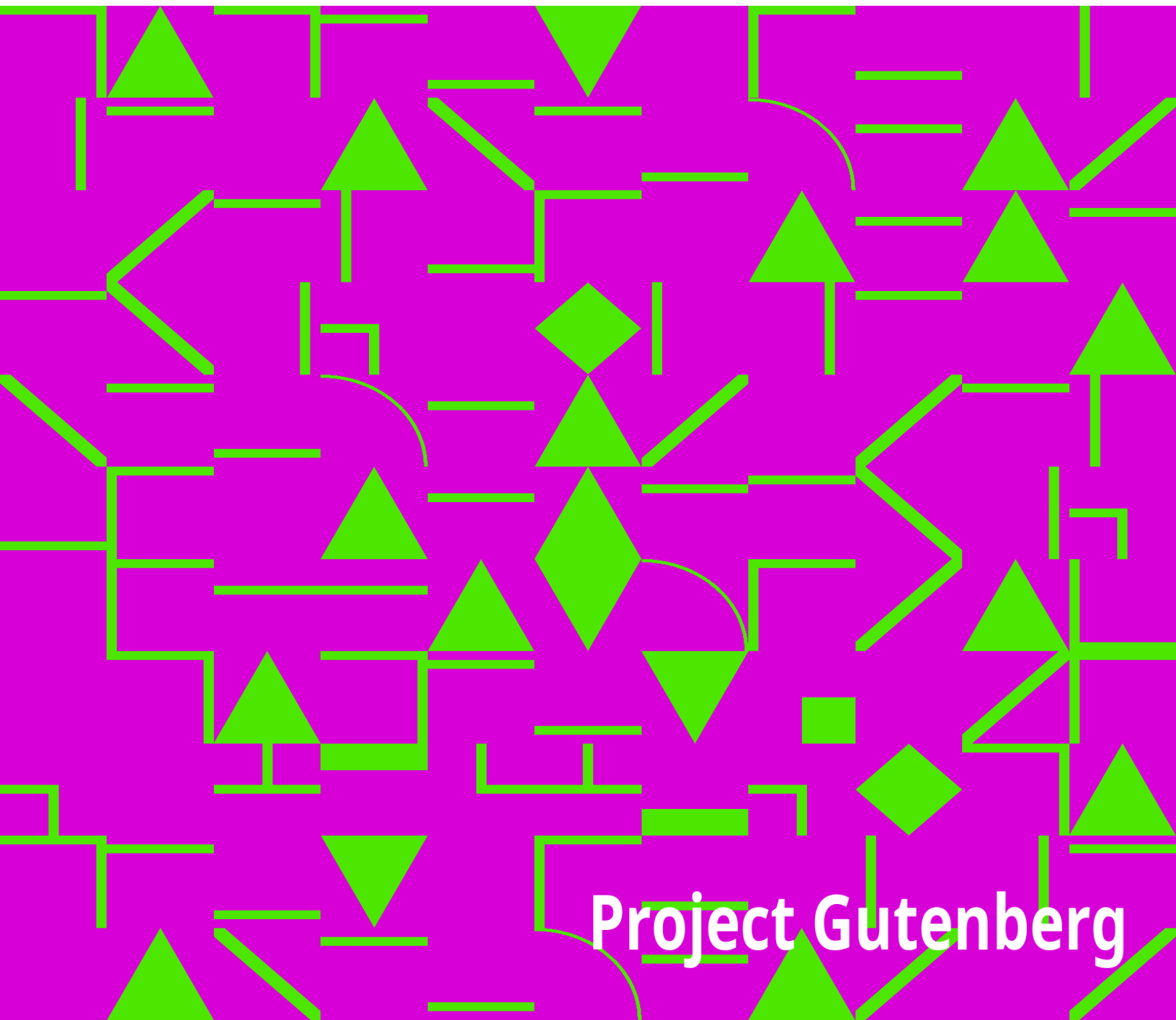


**Papers of the American Negro Academy.
(The American Negro Academy. Occasional
Papers, No. 18-19.)**

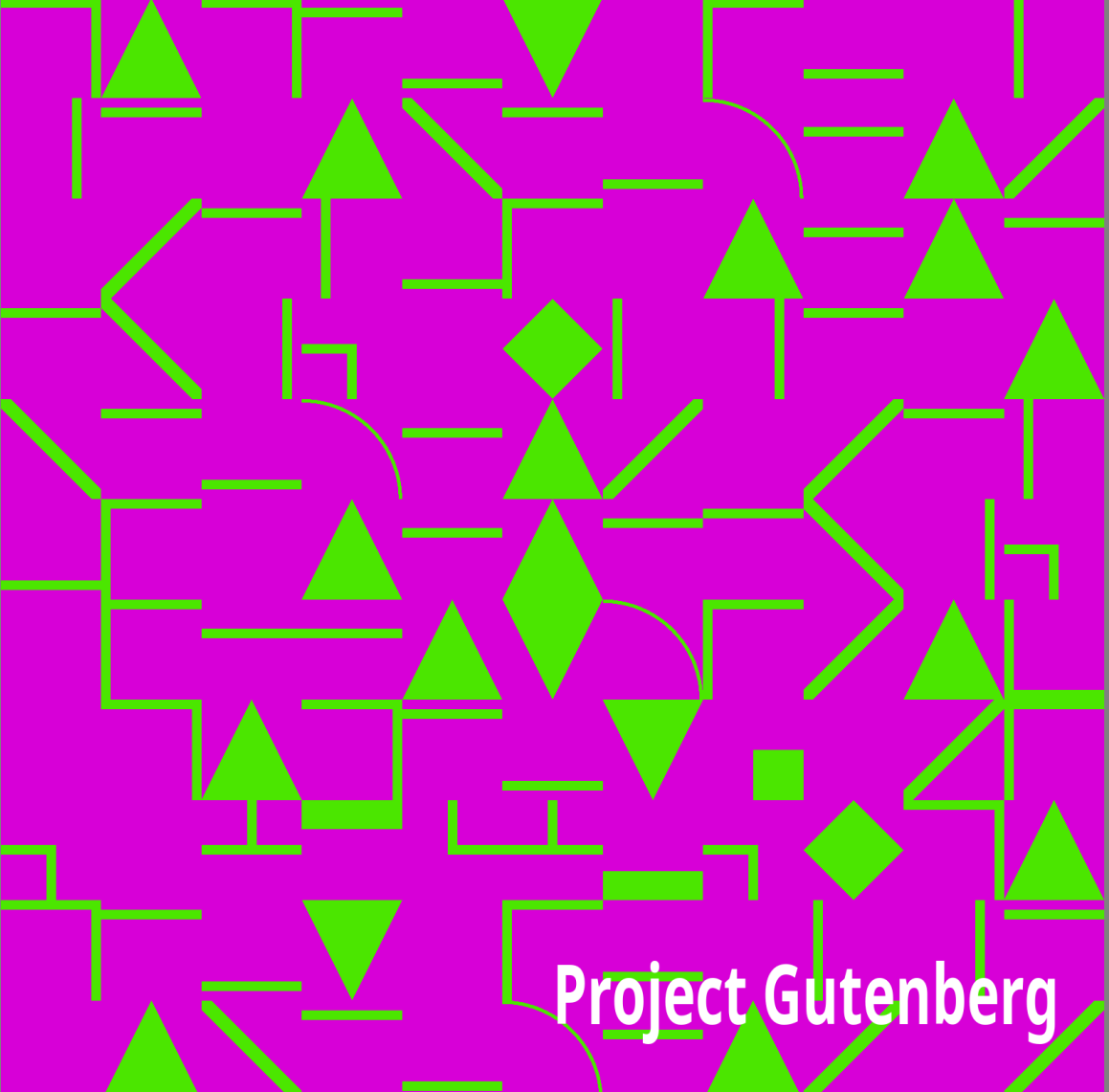
Archibald Henry Grimké et al.



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The Sex Question and Race Segregation

BY ARCHIBALD H. GRIMKÉ, President.

Message of San Domingo to the African Race

BY THEOPHILUS G. STEWARD, U. S. A. (Retired)

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Table of Contents

[Archibald H. Grimké. The Sex Question and Race Segregation](#)

[Theophilus G. Steward. The Message of San Domingo to the African Race](#)

[Lafayette M. Hershaw. The Status of the Free Negro Prior to 1860](#)

[Arthur A. Schomburg. The Economic Contribution by the Negro to America](#)

[William Pickens. The Constitutional Status of the Negro from 1860-1870](#)

[John W. Cromwell. The American Negro Bibliography of the Year](#)

Archibald H. Grimké. The Sex Question and Race Segregation

One wrong produces other wrongs as surely and as naturally as the seed of the thorn produces other thorns. Men do not in the moral world gather figs from a thorn-bush any more than they do in the vegetable world. What they sow in either world, that they reap. Such is the law. The earth is bound under all circumstances and conditions of time and place to reproduce life, action, conduct, character, each after its own kind. Men cannot make what is bad bring forth what is good. Truth does not come out of error, light out of darkness, love out of hate, justice out of injustice, liberty out of slavery. No, error produces more error, darkness more darkness, hate more hate, injustice more injustice, slavery more slavery. That which we do is that which we are, and that which we shall be.

The great law of reproduction which applies without shadow of change to individual life, applies equally to the life of that aggregation of individuals called a race or nation. Not any more than an individual can they do wrong with impunity, can they commit a bad deed without reaping in return the result in kind. There is nothing more certain than the wrong done by a people shall reappear to plague them, if not in one generation, then in another. For the consummation of a bad thought in a bad act puts what is bad in the act beyond the control of the actor. The evil thus escapes out of the Pandora-box of the heart, of the mind, to reproduce and to multiply itself a hundredfold and in a hundred ways in the complex

relationships of men within human society. And then it returns not as it issued singly, but with its related brood of ill consequences:

"But in these cases,
We still have judgment here; that we but teach
Bloody instructions, which being taught return
To plague the inventor: this even-handed justice
Commends the ingredients of our poisoned chalice
To our own lips."

The ship which landed at Jamestown in 1619 with a cargo of African slaves for Virginia plantations, imported at the same time into America with its slave-cargo certain seed-principles of wrong. As the slaves reproduced after their kind, so did these seed-principles of wrong reproduce likewise after their kind. Wherever slavery rooted itself, they rooted themselves also. The one followed the other with the regularity of a law of nature, the invariability of the law of cause and effect. As slavery grew and multiplied and spread itself over the land, the evils begotten of slavery grew, and multiplied, and spread themselves over the life of the people, black and white alike. The winds which blew North carried the seeds, and the winds which blew South, and wherever they went, wherever they fell, whether East or West, they sprang up to bear fruit in the characters of men, in the conduct of a growing people.

The enslavement of one race by another necessarily produces certain moral effects upon both races, moral deterioration of the masters, moral degradation of the slaves. The deeper the degradation of the one, the greater will be the deterioration of the other, and vice versa. Indeed, slavery is a breeding-bed, a sort of compost heap, where the best qualities of both races

decay and become food for the worst. The brute appetites and passions of the two act and react on the moral nature of each race with demoralizing effects. The subjection of the will of one race under such circumstances to the will of another begets in the race that rules cruelty and tyranny, and in the one that is ruled, fear, cunning and deceit. The lust, the passions of the master-class, act powerfully on the lust, the passions of the slave-class, and those of the slave-class react not less powerfully on the master-class. The greater the cruelty, tyranny and lust of the one, the greater will be the cunning, deceit and lust of the other. And there is no help for this so long as the one race rules and the other race is ruled, so long as there exists between them in the state inequality of rights, of conditions, based solely on the race-hood of each.

If two races live together on the same land and under the same government as master and slave, or as superior and inferior, there will grow up in time two moral standards in consequence of the two races living together under such conditions. The master or superior race will have one standard to regulate the conduct of individuals belonging to it in respect to one another, and another standard to regulate the conduct of those self-same individuals in respect to individuals of the slave or inferior race. Action which would be considered bad if done by an individual of the former race to another individual of the same race, would not be regarded as bad at all, or at least in anything like the same degree, if done to an individual of the latter race. On the other hand, if the same offense were committed by an individual of the slave or inferior race against an individual of the master or superior race, it would not only be deemed bad, but treated as very bad.

With the evolution of the double moral standard and its application to the conduct of these two sets of individuals in the state, there grows up in the life of both classes no little confusion in respect to moral ideas, no little

confusion in respect to ideas of right and wrong. Nor is this surprising. The results of such a double standard of morals could not possibly be different so long as human nature is what it is. The natural man takes instinctively to the double standard, to any scheme of morals which makes it easy for him to sin, and difficult for a brother or enemy to do likewise. And this is exactly what our American double standard does practically in the South for both races, but especially for the dominant race, for example, in regard to all that group of actions, which grows out of the relation of the sexes in Southern society.

What relations do the Southern males of the white race sustain to the females of both races? Are these relations confined strictly to the females of their own race? Or do they extend to the females of the black race? Speaking frankly, we all know what the instinct of the male animal is, and man after all, is physically a male animal. He is by nature one of the most polygamous of male animals. There goes on in some form among the human males, as among other males, a constant struggle for the females. In polygamous countries each man obtains as many wives as he can purchase and support. In monogamous countries he is limited by law to one wife, whether he is able to maintain a plurality of wives or not. When he marries this one woman the law defines his relations to her and also to the children who may issue from such a union. But the man—I am talking broadly—is at heart a polygamist still. The mere animal instinct in his blood inclines him to run after, to obtain possession of other wives. To give way to this inclination in monogamous countries he knows to be attended with danger, to be fraught with sundry grievous consequences to himself. He is liable to his wife, for example, to an action for divorce on the ground of adultery. He is liable to be prosecuted criminally on the same charge by the state, and to be sent to prison for a term of years. But this is not the end of his troubles.

Public opinion, society, falls foul of him also in consequence of his misconduct. He loses social recognition, the respect of his fellows, becomes in common parlance a disgraced man. The one-wife country is grounded on the inviolability of the Seventh Commandment. All the sanctions of law, of morals, and of religion conspire to protect the wife against the roving propensities of the husband, combine to curb his male instinct to run after many women, to practice plural marriages. There thus grows up in the breast of the race, is transmitted to each man with the accumulated strength of social heredity, a feeling of personal fear, a sense of moral obligation, which together war against his male instinct for promiscuous sexual intercourse, and make for male purity, for male fidelity to the one-wife idea, to the one-wife institution. The birth of this wholesome fear in society is the beginning of wisdom in monogamous countries. And unless this sense of moral obligation is able to maintain its ascendancy in those countries, the male sexual instinct to practice plural marriages will reassert itself, will revert, if not openly, then secretly, to a state of nature, to illicit relations. But every tendency to such reassertion, or reversion, is effectively checked in a land where national morals are sound, are pure, by wise laws which a strong, an uncompromising public sentiment makes and executes impartially against all offenders.

This is the case in respect to monogamous countries inhabited by a homogeneous population. In such countries where there exist no differences of race, where there is no such thing as a dominant and a subject race, the national standard of morals is single, the sexual problem is accordingly simple and yields readily, uniformly, to the single standard regulation or treatment. The "Thou shalt not" of the law applies equally to all males in their relations to all females in general, and to the one female in particular. No confusion ensues in law or in fact in respect to the subject, to the

practical application of the rule to the moral conduct of individuals. Fornication, adultery, marriage and concubinage are not interpreted by public sentiment to mean one thing for one class of individuals, and another thing for another class under the same law. There are no legal double standards, no moral double standards. The moral eye of society, under these circumstances, is single, the legal eye of the state is likewise single, and the eye of the whole people becomes, in consequence, full of moral light. Marriage is held to be sacred by the state, by society, and adultery or the breach of the marriage-vow or obligation is held accordingly to be sacrilege, one of the greatest of crimes.

The man who seduces another man's wife in such a society, in such a state, is regarded as an enemy by society, by the state, and is dealt with as such. Likewise the man who seduces another man's daughter. For this crime the law has provided penalties which the wrong-doer may not escape. And it matters not whether the seducer be rich and powerful, or the girl poor and ignorant, the state, society respects not his wealth nor his power. His status in respect to her is fixed by law, and hers also in respect to him. While in the event of issue arising from such a union, the law establishes certain relations between the child and the putative father. It enables the mother to procure a writ against him, and in case of her success he will be thereupon bound to support the child during a certain number of years. The state, society, does not yet compel him to give his name to the innocent offspring of his illicit act, but it does compel him to provide for it proper maintenance. Thus has the state, society, in monogamous countries restrained within bounds the sexual activity of the human male, evolving in the process a code of laws and one of morals for this purpose. These codes are administered impartially, equally, by the state, by society, over all of the males in their relation to all of the females.

In monogamous countries where two races live side by side, one dominant, the other subject, the single legal standard, the single moral standard, yields in practice if not in theory to the double standard in law and morals in respect to the sexual question. In the ensuing confusion of moral ideas, of moral obligations, the male instinct gains in freedom from restraints of law, of social conventions, and reverts in consequence and to that extent to a state of nature, of natural marriage. The legal and moral codes which regulate the relations of the males of one race with the females of the same race are not applicable in regulating the relations of those self-same males with the females of the other race. Marriage in such a country has regard to the males and females of the same race, not to those of different races. The crime of adultery or of fornication undergoes the same gross modification. For in such a land the one-wife idea, the one-wife institution has reference to the individuals of the same race only, not to individuals of opposite races. The "Thou shalt not" of the law, public opinion interprets to refer to the sexual conduct of the males and females of the same race in respect to one another, *i. e.*, a male member of the dominant race must limit his roving propensities wherever the females of his own race are concerned. He need not under this same law, interpreted by this same public opinion, curb to the same extent those roving propensities where the females of the other race are concerned. He may live in licit intercourse with a woman of his own race and at the same time live in illicit intercourse with a woman of the other race, *i. e.*, without incurring the pains and penalties made by the state, by society, against such an offense in case the second woman be of his own race. Neither the law nor public opinion puts an equal value on the chastity of the women of the two races. Female chastity in the so-called superior race is rated above that in the so-called inferior race. Hence the greater protection accorded to the woman of the

first class over that accorded to the woman of the second class. The first class has well-defined legal and moral rights which the men of that class are bound to respect, rights which may not be violated with impunity. Here we encounter one of the greatest dangers attendant upon race segregation, where the two races are not equal before the law, where public opinion makes and enforces one law for the upper race, and practically another law for the under race.

Under these circumstances a male member of the dominant race may seduce the wife of a member of the subject race, or a daughter, without incurring any punishment except at the hands of the man wronged by him. Such a wrong-doer would not be indicted or tried for adultery or seduction, nor could the wronged husband or father recover from him damages in a suit at law, nor yet could a bastardy suit be brought by the girl against him with any show of success for the support of his child, were issue to be born to her from such illicit union. The men of the dominant race find themselves thus in a situation where the law, public opinion, provides for their exclusive possession the women of their own race, and permits them at the same time to share with the men of the subject race possession of the women of that race. The sexual activity of the men of the first class approaches in these conditions to a state of nature in respect to the women of the second class. They are enabled, therefore, to select wives from the stronger race, and mistresses from the weaker one. The natural law of sexual selection determines the mating in the one case as truly as in the other, *i. e.*, in the case of concubinage as in that of marriage. The men of the upper class fall in love with the women whom they have elected to become their wives, they also fall in love with the women they have elected to become their concubines. They go through all those erotic attentions to the women of each class, which are called courtship in the language of sexual

love. Only in the case of women of the first class this courtship is open, visible to the eye of the upper world of the dominant race, while in the case of the women of the second class it is secret, conducted in a corner of the lower world of the subject race.

These men build homes in the upper world where are installed their wives, who beget them children in lawful wedlock; they likewise build homes in the lower world, where are installed their concubines, who beget them children in unlawful wedlock. The wives move, have their being in the upper world and sustain to their husbands certain well-defined rights and relations, social and legal. The children of this union sustain to those fathers equally clear and definite rights and relations in the eye of the law, in the eye of society. The law, society, imposes on them, these husbands and fathers, certain well-defined duties and obligations in respect to these children, these wives, which may not be evaded or violated with impunity. These men cannot therefore disown or desert their wives and children at will. Whereas, such is not the case, is not the situation, in respect to the unlawful wives hidden away in a corner of the under-world, or of that of the children begotten to those men by these unlawful wives, but quite the contrary. For them the law, society, does not intervene, does not establish any binding relations, any reciprocal rights between those women and children and the men, any more than if the men and the women were living together in a state of nature and having children born to them in such a state, where the will of the natural man is law, where his sexual passion measures exactly the extent and the duration of his duties and obligations in respect to his offspring and the mother of them. When he grows weary of the mother he goes elsewhere, and forgets that he ever had children by her.

This is the case, is the situation, in the under-world of the under race. For down there, there is no law, no public opinion, to curb the gratification

of the sexual instinct of the men of the upper world, such as exists and operates so effectively to curb those instincts in that upper world. In the upper world these men may have but one wife each, but in the lower one they may have as many concubines as they like, and a different set of children by each concubine. They may have these women and children in succession, or they may have them at the same time. For there is in that under-world no law, no effective power to say to those men, to their lust of the flesh: "Thus far and no farther." In the upper world they are members of a civilized society, amenable to its codes of law and morals; in the lower one, they are merely male animals struggling with other male animals for the possession of the females. On the dim stage of the under-world this is the one part that they play. In this one sensual role they make their entrances and their exits. They may have in the upper world achieved distinction along other lines of human endeavor, but in the lower one, they achieve the single distinction of being successful male animals in pursuit of the females.

So much for the males of the dominant race. Now for those of the subject race. How do they conduct themselves at this morally chaotic meeting-place of the two races? What effect does this sexual freedom, spawned under such conditions, produce on their life, on their actions? Like the men of the upper race, they, too, live in a monogamous country. But unlike their male rivals, these men of the under-world are not free to seek their mates from the women of both races. The law restricts them, public opinion restricts them, the men of the dominant race restrict them in this regard to the women of their own race. Around the women of the dominant race, law, public opinion, the men of that race, have erected a high wall which the men of the other race are forbidden to climb. What do these men see in respect to themselves in view of this triply-built wall? They see that

while they share the women of their own race with the men of the other race, that these same men enjoy exclusive possession of their own women, thanks to the high wall, built by law, by public opinion, and the strong arms of these self-same men. What do the men of the under world? Do they struggle against this sexual supremacy of the men of the upper world, or do they succumb to circumstances, surrender unconditionally to the high wall? We shall presently see.

This racial inequality generates heat in masculine breasts in the under world. And with this heat there ensues that fermentation of thought and feeling which men call passion. Those submerged men begin to think sullenly on the subject, they try to grasp the equities of the situation. As thought spreads among them, feeling spreads among them also. About their own women they see no fence, about the women of the other race they see that high wall. They cannot think out to any satisfactory conclusion the justice of that arrangement, cannot understand why the women of the upper race should belong exclusively to the men of that race, and why these self-same men should share jointly with the men of the lower race the women of this race.

The more they strike their heads against this one-sided arrangement, the less they like it, the more they rebel against it. And so they come to grope dimly for some means to oust their rivals from this joint-ownership of the women of the lower race. And when they fail, feeling kindles into anger, and anger into resentment. Against this inequality of conditions a deepening sense of wrong burns hotly within them. Dark questionings assail their rude understandings. Have the men of the upper race their exclusive preserves, then ought not the men of the lower race to have their exclusive preserves also? Is it a crime, has law, public opinion, the men of the upper race made it a crime for the men of the lower race to poach on those preserves? Then

the law, public opinion, the men of the lower race ought to make it equally a crime for the men of the upper race to poach on the preserves of the other race. But law, public opinion, refuses to make the two acts equal in criminality and the men of the lower race are powerless to do so without the help of equal laws and administration, and a just public sentiment. Baffled of their purpose to establish equality of conditions between them and their rivals, they thereupon watch the ways of these rivals. They see them descending into the lower world in pursuit of the women of that world by means that are crooked and ways that are dark. A few of the men in that lower world profiting by that villainous instruction, endeavor to ascend into the upper world by the same crooked means, by the same dark ways. For they affect to believe that what is sauce for one race's goose is sauce for the other race's gander. Thus it is attempted craftily, but, in the main, futilely, to strike a sort of primitive balance between the men of the two races in respect to the women of the two races.

Now no such balance can be struck by the unaided acts of the men of the lower race. Without the co-operation of the women of the upper race these men are helpless to scale the high wall, or to make the slightest breach in it. The law, public opinion, the men of the upper race, render such co-operation very difficult, well-nigh impossible, did there exist any disposition on the part of the women of the upper race to give aid and comfort for such a purpose to the men of the lower race. But as a matter of fact, and speaking broadly, there exists no such disposition. The law of sexual selection does not operate under the circumstances to make the men of the lower race sufficiently attractive to the women of the upper race. It is possible that in a state of nature, and under other circumstances, the case might be different. But under present conditions the sexual gravitation of the women of the upper world toward the men of the lower world may be

set down as infinitesimally small, practically a negligible quantity. Everything in the state, in society, in deep-rooted racial prejudices, in the vastly inferior social and economic standing of the lower race and the ineffaceable dishonor which attaches to such unions in the public mind, together with the actual peril to life which attends them, all combine to discourage, to destroy almost any inclination in that direction on the part of the women of the upper race.

Now, while this is true, speaking broadly, it is not altogether so. For in scattered individual cases, in spite of the difficulties and dangers, the law of sexual selection has been known to operate between those two worlds. A few women of the upper world, on the right side of the high wall have been drawn to a few men in the lower world, on the wrong side of that wall. By the connivance, or co-operation of such women the men of their choice have climbed into the upper world, climbed into it over the high wall by means that were secret and ways that were dark. As one swallow does not, however, make summer, neither can these scattered instances, few and far between, be cited to establish any general affinity between the women of the upper race and the men of the lower race. On examination they will be seen to be exceptions, which only prove the rule of a want of sexual affinity between them under existing conditions at least. Practically a well-nigh impassable gulf, to change the figure, separates the men of the lower world from the women of the upper one. The men as a class can not bridge that gulf, and the women as a class have no desire to do so. This, then, is the actual situation: the men of the upper world enjoy practically exclusive possession of the women of that world, while the men of the lower world do not enjoy exclusive possession of the women of their world, but share this possession with the men of the upper world.

The effect that is produced in consequence of this state of things on the morals of the men of the lower world, is distinctly and decidedly bad. Such conditions, such a situation, could not possibly produce a different effect so long as human nature is what it is. And the human nature of each race is essentially the same. The morals of the men of the two worlds will be found at any given time to be almost exactly alike in almost every particular. For the morals of the men of the lower world are in truth a close imitation of those of the men of the upper world—closest not where those morals are at their best, but where they are at their worst. This will be found to be the case every time. So that it happens that where the morals of the men of the upper world are bad, those of the men of the lower world will not be merely bad, but very bad. There follows naturally, inevitably, under these circumstances and in consequence of these conditions, widespread debauchery of the morals of the women of the lower race. And for this there is absolutely no help, no remedy, just so long as the law and public opinion maintain such a demoralizing state of things.

If there exists no affinity between the men of the lower world and the women of the upper world, there does then exist a vital connection between the masculine morals of the two worlds. These morals are in constant interaction, one upon the other. When the moral barometer falls in the upper world, it falls directly in the lower one also. And as the storm of sensuality passes over both worlds simultaneously, its devastating effects will always fall heaviest on the lower one where the women of that world form the center of its greatest activity. Whatever figure the moral barometer registers in the lower world, it will register a corresponding one in the upper, and this whether the barometer be rising or falling. If the moral movement be downward in the lower world, it will be downward in the upper, and if it be upward in the upper, it will be upward in the lower and vice versa.

In view of the vital connection then between the morals of the two races the moral regeneration of either must of necessity include both. At one and the same time the work ought to start in each and proceed along parallel lines in both. The starting-point for each is the abolition of the double moral standard, and the substitution in law and in public opinion of a single one, applicable alike to the conduct of both. Otherwise every reformatory movement is from the beginning doomed to failure, to come to naught in the end. For the roots of the moral evil which exists under present conditions and by virtue of them cannot be extirpated without first changing those conditions.

The morals of the two races in default of such change of conditions must sink in consequence from bad to worse. They cannot possibly rise in spite of such conditions.

I have now discussed the subject of the contact of two races living together on the same land and on terms of inequality, in its relations to the morals of the men of those races. It yet remains to consider the same subject in its relations to the conduct of the women. What is the effect of such contact, to be specific, on the women of the two races in the South? And first, what is it on white women? Do these women know of the existence of the criminal commerce which goes on between the world of the white man and that of the colored woman? And if so, are they cognizant of its extent and magnitude. They do perceive, without doubt, what it must have been in the past from the multitude of the mixed bloods who came down to the South from the period before the war, or the abolition of slavery. Such visible evidence not even a fool could refuse to accept at its full face value. And the white women of the South are not fools. Far from it. They have eyes like other women, and ears, and with them they see and hear what goes on about them. Their intelligence is not deceived in respect to appearance

and underlying causes. Certainly they are not ignorant of the fact that a Negro can no more change his skin than a leopard his spots. When therefore they see black mothers with light-colored children, they need not ask the meaning of it, the cause of such apparent wonder. For they know to their sorrow its natural explanation, and whence have come all the mulattoes and quadroons and octoroons of the South. And to these women this knowledge has been bitterer than death. The poisoned arrow of it long ago entered deep into their souls. And the hurt, cruel and immedicable, rankles in the breasts of those women today, as it rankled in the breasts of their mothers of a past long vanished.

What, pray, is engendered by all of this widespread but suppressed suffering transmitted, as a bitter heritage for generations, by Southern mothers to Southern daughters? What but bitter hatred of the black woman of the South by the white woman of the South. How is this hatred expressed? In a hundred ways and by a hundred means. One cannot keep down a feeling of pity for a large class of women in the South who cannot meet in street, or store, or car, a well-dressed and comely colored girl without experiencing a pang of suspicion, a spasm of fear. For there arises unbidden, unavoidably, in the minds of such women the ugly question, whose daughter is she, and whose mistress is she to be? For in the girl's veins may flow the proudest blood of the South. And this possibility, aye, probability, so shameful to both races, no one in the South knows better than the Southern white woman. What happens? The most natural thing in the world, but not the wisest. The hatred, the suspicion, the fear of these women find expression in scorn, in active ill-will, not only toward that particular girl, but toward her whole class as well. They are all put under the ban of this accumulated hatred, suspicion and fear.

A hostility, deep-seated and passionate as that which proceeds from white women as a class toward black women as a class, shoots beyond the mark and attacks indiscriminately all colored women without regard to character, without regard to standing or respectability. It is enough that they belong to the black race; ergo, they are bad, ergo, they are dangerous. All this bitter hatred of the women of one race by the women of the other race has borne bitter fruit in the South in merciless class distinctions, in hard and fast caste-lines, designed to limit contact of the races there to the single point where they come together as superior and inferior. Hence the South has its laws against intermarriage, and for separating the races in schools, in public libraries, in churches, in hotels, in cars, in waiting rooms, on steamboats, in hospitals, in poorhouses, in prisons, in graveyards. Thus it is intended to reduce the contact of the races to a minimum, to glut at the same time the hatred of the white women of the South toward the black women of the South, and to shut the men of each race from the women of the other race. But how foolish are all these laws, how futile are all these class distinctions! Do they really effect the separation of the races? They do not, they cannot under existing conditions. What then do they? They do indeed separate the world of the white man and woman from the colored man and woman, but they fail utterly to separate the world of the colored woman from the white man.

The joint fear of the white woman and the white man is incorporated today in every State of the South in laws interdicting marriage between the races. But do these laws put an end to the sexual commerce which goes on between the world of the white man and that of the colored woman? Have they checked perceptibly this vile traffic between these two worlds? They have not nor can they diminish or extinguish this evil. On the contrary, because they divide the two worlds, because they uphold this legal

separation of the races, they provide a secret door, a dark way between the two worlds, between the two races, which the men of the upper world open at will and travel at pleasure. For they hold the key to this secret door, the clue to this dark way. Such preventive measures are in truth but a repetition of the fatal folly of the ostrich when it is afraid. For then while this powerful bird takes infinite pains to cover its insignificant front lines, it leaves unprotected its widely extended rear ones, and falls accordingly an easy victim to the enemy which pursues it. The real peril of an admixture of the races in the South lies not in intermarriage, but in concubinage, lies through that secret door which connects the races, the key to which is in the hands of the white men of the South. It is they who first opened it, and it is they who continue to keep it open. Were it not for the folly of the white women of the South, it might yet be closed and sealed. The folly of the white women of the South is their hatred, their fear of the colored women of the South. They first think to rid themselves of the rivalry of the second class by excluding them from the upper world, by shutting them securely within the limits of the lower one. But these women forget the existence of that secret door, of the hidden way. They forget also the hand that holds the key to the one and the clue to the other. That hand is the hand of the white man; it is certainly not the hand of the colored woman.

Is it not the white woman of the South more than any other agency, or than all other agencies put together, who are responsible for the existence of a public sentiment in the South which makes it legally impossible for a colored girl to obtain redress from the white man who betrayed her, or support from him for his bastard child? The white woman of the South thus outlaws, thus punishes her black rival. But what does such outlawry accomplish, what such punishment? What do they but add immensely to the strength of the white man's temptation by making such illicit intercourse

safe for him to indulge in? Thanks to the white woman's mad hatred of the colored woman, to her insane fear of her colored rival, the white man of the South is enabled to practice with singular impunity this species of polygamy. For the penalties against the adulterer, against the fornicator, which the law provides, which public opinion provides, for him in the upper world, he well knows will not be called down on his head were the acts of adultery or fornication committed by him in the lower world. It is a sad fact and a terrible one, sad for both races and terrible for the women of both races in the actual and potential wickedness of it. No colored girl, however, cruelly wronged by a white man in the South will be able to obtain an iota of justice at the hands of that man in any court of law in any Southern State, or to get the slightest hearing or sympathy for her cause at the bar of Southern public opinion. Were she to enter the upper world of the white woman with such a case against some white man, who but the Southern white woman would be the first to drive her back into her world? But unless she is not only allowed but encouraged to emerge out of her world with the shameful fruit of her guilty life and love, and so to confront her white paramour or betrayer in his world, how is the lower world ever to rid itself of such as she, or the upper one of such as he? In the segregation and outlawry of the black woman under such conditions lie the white woman's greatest danger, lie the white race's greatest danger from admixture of the races, lies the South's greatest danger to its morals. For through such segregation and outlawry run the white man's way to the black woman's world, and therefore to miscegenation of the races, to their widespread moral degradation and corruption. Amalgamation is not therefore made hard, but appallingly easy.

But there is another aspect to this side of the subject which must not be entirely ignored, and that is the existence in a few instances of illicit

relations between some white women and some colored men in the South. That such relations have existed in the past and do actually exist there at the present time, there is absolutely no doubt whatever. In certain localities these relations, although known or suspected, have been tolerated, while in general as soon as they are discovered or suspected they have been broken up by mobs who murder the black participants when they are caught, sometimes on trumped-up charges of having committed the "usual crime." The existence of such relations is not so strange or incredible as may be supposed at first hearing of them. For it is a fact hardly less curious, if not so strange, that there are men who while they would not think of marrying into a class beneath them would nevertheless live readily enough in a state of concubinage with women of that class. And in this upper class there are women, not many, it is true, who would do the same thing. They care enough for the men in the class beneath them to enter into illicit relations in secret with them, but not enough to enter into licit relations with these same men in the open, in the gaze of a scornful and horrified world. Has it ever been seriously considered that like father may occasionally produce like daughter in the South? And that such moral lapses by a few white women of that section may be accounted for in part at least by that mysterious law of atavism? The sons are like their fathers in respect to their fondness for colored women, why may not one daughter in, say, ten thousand, resemble those fathers in that same shameful, though not altogether unnatural respect? Do not such instances, few and far between at present though they be, furnish matter for thoughtful people of the South regardless of sex, race or color?

Have the white women of the South considered that under existing conditions they are deprived of effective influence, of effective power, to reform the morals of the men of their race? And that unless the morals of

the men are reformed the morals of the whole white race will eventually decline? If the women fail to lift the level of the moral life of their men to their own higher plane, the lower morals of the men will drag downward ultimately to their level that of the women. From this inevitable conclusion and consequence there is no possible escape. But the white women of the South are powerless to lift the morals of their men without lifting at the same time the morals of the women of the black race. If, however, they steadily refuse to do so in the future, as they have refused to do so in the past, and as they refuse to do so today by the only sure means which can and will contribute mightily to effect such a purpose, viz., by making the black women their equals before the law, and at the bar of an enlightened public sentiment, and these women remain in consequence where they are today, a snare to the feet of white men, when these men trip over this snare into the hell of the senses, they will drag downward slowly but surely with them toward the level of these self-same black women the moral ideals if not the moral life of the white women of the South.

And now a final word about the black woman of the South: She holds in her keeping the moral weal or woe, not only of her own race, but of the white race also. As she stands today in respect to the white man of the South, her situation is full of peril to both races. For she lives in a world where the white man may work his will on her without let or hindrance, outside of law, outside of the social code and moral restraints which protect the white woman. This black woman's extra-legal position in the South, and her extra-social status there, render her a safe quarry for the white man's lust. And she is pursued by him for immoral ends without dread of ill consequences to himself, either legal or social. If she resists his advances, and in many cases she does resist them, he does not abate his pursuit, but redoubles it. Her respectability, her very virtue, makes her all the more

attractive to him, spurs the more his sensual desire to get possession of her person. He tracks her, endeavors to snare her in a hundred dark ways and by a hundred crooked means. On the street, in stores, in cars, going to and from church, she encounters this man, bent on her ruin. Into her very home his secret emissaries may attack her with their temptation, with their vile solicitation. Nowhere is she safe, free from his pursuit, because no law protects her, no moral sentiment casts about her person the aegis of its power. And when haply dazed by the insignia of his superior class, or his wealth, or the magic of his skin, or the creature comforts which he is able to offer her, she succumbs to his embrace and enters the home to which he invites her, she becomes from that time outlawed in both worlds, a moral plague-spot in the midst of both races. For she begins then to reproduce herself, her wretched history, her sad fate, in the more wretched history, in the sadder fate of her daughters. And so in her world of the senses, of the passions, she enacts in a sort of vicious circle the moral tragedy of two races. If the white man works the moral ruin of her and hers, she and they in turn work upon him and his a moral ruin no less sure and terrible.

What is the remedy? It is certainly not the segregation of the races in a state of inequality before the law. For such segregation exists today. It has existed to the hurt of both races in the past. It is the fruitful parent of fearful woes at the present time, and will be the breeder of incalculable mischief for both races, for the South, and for the nation itself, in the future. The remedy lies not then in racial segregation and inequality, for that is the disease, but in interracial comity and equality. The double moral standard has to be got rid of as quickly as possible, and a single one erected in its stead, applicable alike to the men and women of both races. The moral world of the white man and that of the black woman must be merged into one by the ministers of law and religion, by an awakened public conscience,

and by an enlightened and impartial public sentiment, which is the great promoter and upholder of individual and national righteousness. The black woman of the South must be as sacredly guarded as a woman by Southern law and public opinion against the sexual passion and pursuit of the Southern white man as is the Southern white woman. Such equality of condition, of protection, in the South is indispensable to any lasting improvement in the morals of its people, white or black. If that section persists in sowing inequality instead of equality between the races, it must continue to gather the bitter fruits of it in the darkened moral life, in the low moral standard of both races. For what the South sows, whether it be cotton or character, that it will surely reap.



Theophilus G. Steward. The Message of San Domingo to the African Race

"The mention of that name, San Domingo," says McMaster, "calls up the recollection of one of the finest colonies, of one of the noblest struggles for liberty, of one of the grandest men, and of one of the foulest deeds in the history of revolutionary France."^{[1](#)}

- ^{[\[1\]](#)} History of the American People, John Bach McMaster Vol. III, p. 215.

The part that the inhabitants of that island took in our war of independence, I have related previously in a paper read before this body. (No. 5.) I may quote in substance from that paper the following facts.

The record given by Minister Rush secured in Paris in 1849, and preserved in the Pennsylvania Historical Society states that a legion of colored troops from San Domingo saved the American army from annihilation by bravely covering its retreat in the disastrous repulse which it met in Savannah in 1779. This legion was composed of about 800 freedmen, black and mulatto, and was known as Fontages' Legion. They had freely volunteered, and had accompanied D'Estaing from Port-au-Prince, and as the Haitian historians say, they came to our shores and covered themselves with glory in the cause of freedom. Among the men

named as winning distinction in that critical action were: André Rigaud, Beauvais, Villatte, Beauregard, Lambert and Christophe. How many of the brave men of that legion gave up their lives in the cause of American independence is not known; but we do know that some colored martyrs from San Domingo, poured out their blood along with that of the colored patriots of our own country as a libation to American freedom. The meagre record states that Christophe received a dangerous gunshot wound; how many others were wounded or even slain we do not know.

A few years later, and after the revolution in their own island, a strong contingent went forth from there to the aid of Bolivar in Venezuela, and by their timely and effective co-operation converted Bolivar's overwhelming defeat into victory. But for the modesty and state policy of Petion, his own name would have been associated with that of Bolivar in the liberation of South America.² During Cuba's recent struggles the Haitian people manifested the liveliest interest and sympathy in the efforts of the Cuban patriots.

[2] A monument to Petion has been set up in the public square of Caracas.

These glimpses are sufficient to show that from some cause and by some means, the colored people of San Domingo had acquired an appreciation of freedom including more than the mere desire to be free from slavery. The revolt against slavery, however, was their most notable manifestation of their love of liberty. Petion in his consultation with Bolivar after the latter's defeat before mentioned, insisted that on renewing his efforts he should proclaim the freedom of all the slaves as a first step. Bolivar in his letter to Petion replying to this suggestion said: "In my

proclamation to the inhabitants of Venezuela, and in the decree that I shall issue announcing liberty to the slaves, I do not know that it will be permitted to me to demonstrate the real sentiment of my heart toward Your Excellency, and to leave to posterity an undying monument to your philanthropy." He then asked if he might make known the fact that wise counsel and material aid had been furnished him by the infant black Republic.

Petion's reply was as follows: "You know, general, my sentiments toward the cause that you have the valor to defend and also toward yourself personally. You surely must feel how ardently I desire to see the oppressed delivered from the yoke of bondage; but because of certain diplomatic obligations which I am under toward a nation that has not as yet taken an offensive attitude toward the republic, I am obliged to ask you not to make public the aid I have given you, nor to mention my name in any of your official documents."

Toussaint L'Ouverture in his first proclamation to the self-emancipated slaves of his country, and to those still in bondage, says: "It is my desire that liberty and equality shall reign in Saint Domingo. I am striving to this end. Come and unite with us, Brothers, and combat with us for the same cause."

Liberty and equality then reigned in the French mind and however vague the idea which had found lodgment in the brain of the San Domingo blacks and mulattos, it was nevertheless sufficiently entrancing to call them from the depths of the inferno in which they were cast and to tempt them to essay the dizziest heights. At a later period this most remarkable man in explaining the object for which he was contending, defined his idea of liberty in words worthy of that greatest statesman, soldier and patriot that has adorned the Negro Race in modern times.³ He said: "It is not a liberty of circumstance, conceded to us alone, that we wish; it is the adoption of

the principle absolute that no man, born red, black or white, can be the property of his fellow man."

[3] "But Bonaparte's plans were doomed to encounter an obstacle in the most remarkable man of negro blood known to modern history. Toussaint L'Ouverture was the descendant, he claimed, of an African chieftain. Highly endowed by nature, he had obtained an excellent education, and had gradually, though born a slave, cultivated his innate power of leadership until all the blacks of San Domingo regarded him with affection and awe."—Sloan's Napoleon, Vol. II, pages 236-237.

Thus spoke Toussaint L'Ouverture, the man of whom Lamartine says: "After God, this man was a nation;" thus he spoke in 1799, a time when all the nations of the earth were themselves slaves to slavery. To this black man was given to see the truth; to them it was not given.

We are now, I trust, prepared to estimate that thirteen years' struggle which went on in that island, during which the tidal wave of destruction, torture, and death, swept the land from side to side, and from end to end, inundating everything except the indomitable spirit of the humble people to whom the heavens of freedom had been opened. Truly does MacMaster class it among the noblest struggles for liberty. I cannot detail that mighty struggle here. For the history of those thirteen eventful years, for the instructive and thrilling story of those heroic black men who garlanded our race, I must refer you to my book on the Haitian Revolution from 1791 to 1804.

We may pause here at the close of this awful period and stand in the proud presence of these triumphant black heroes, as the last of their enemies

sail slowly away as prisoners of war. With the new flag floating over the fortresses of the Cape, and the victorious army well-equipped and intact, it is Dessalines, the intrepid Dessalines, never beaten in battle, never surprised in camp, who in the name of the black people and Men of Color of Saint Domingo announces:

"The Independence of Saint Domingo is Proclaimed.

"Restored to our primitive dignity, we have asserted⁴ our rights; we swear never to yield them to any power on earth."

These were the words of war-worn veterans with swords still unsheathed.

[4] "Asserting their liberties as men, he (Toussaint L'Ouverture) and his fellow slaves rose against their masters and a servile War ensued." Sloan, *ibid*.

They have proclaimed independence, they must now take up the task of government. For this work their training hitherto had been the worst possible, while their anthropological and sociological condition was most unfavorable. Among them were represented fourteen different African tribes,—coming from widely separated territory in their native land and differing in customs and language.⁵ Besides these diversities there was also a positive and assertive element of mulattos, some of whom had been slaveholders, and, what was worse still, the country had but recently emerged from a war of caste, a war between blacks and mulattos, more cruel than the war between the Lancastrians and Yorkists in England, and much more pernicious in the hates it bequeathed.

[5] "C'étaient des hommes tirés de régions fort différentes de l'Afrique équatoriale ou équinoxiale. En partant du nord du continent noir, des Sénégalais, des Yolofo, des Foulahs, des Bambaras, des Mandingoes, des Bissagots, des Sofas se rencontraient, pêle mèle, dans les marchés à esclaves de la colonie. Au sud de Sierra-Leone, on embarquait pour Saint-Domingue des négres de la Côte d'Or, dont les Aradas, les Socos, les Fantins, les Caplaous, les Mines et les Agoñés. De la Côte des Esclaves on a tiré les Cotocolis, les Popos, les Fidas ou Fœdas. Viennet ensuite les Haousas, les Ibos, les Nagos; les Congos tirés de la côte du Congo ou d'Angola, partagés en sous-divisions de Congos-May youmbés, Congos-Moussombés et Mondongues. De l'Afrique orientale ont été tirés les négres de la côte de Mosambique, dont les Mosambiques proprement dits, les Quiriams et les Quilos, Quilos et les Montifiats."

"M. Roosevelt, président des états-Unis et la République d'Haïti," par A. Firmin, published 1905, p. 232-233.

"Here in Haiti, there are recognizable traces of fourteen different African tribes." Bishop Holly. "Haitian Revolution," T. A. Steward, p. 282.

The government set up could but be a military oligarchy. It is well known that there can be no such thing as personal liberty unless there is what may be termed a sovereignty apart from, behind and above the government.⁶ With us that power behind the government, that sovereignty, is the people; but in Haiti in 1804 and for many years thereafter there was no such thing as people in a political sense. There were population, army, government, but not people. Their condition was like that of the Europeans

generally during the Middle ages. In Europe there were populations, subjects, governments, vassals, tenants, serfs, slaves, soldiers, knights and lords, but not people. By people politically, we mean a body held together by some internal bond, by a spiritual consensus. Perhaps to this extent the Haitian population of 1804 might be vaguely called a people. But the idea of people politically includes also that this body must have a common consciousness of fundamental right, and a common sense of necessary duty; and then possess force of character adequate to the attainment of these rights and the fulfilment of this duty. Rights precede duty; and not vice versa. When complete the idea of people is that body which holds in its hands the sovereignty. Governments are divine, but are created by evolution, coming to us as comes our daily bread, through divinely appointed processes. Rights like the ground, are a natural endowment; government like bread is a production. It is no reflection upon Haiti to state the historic fact that in 1804 and for many years thereafter there was no such thing on her soil as people, in a political sense. The idea and the love of liberty were there and the frequent revolutions that have beset her pathway during the century of her existence attest the continued presence of that spirit. The problem of reconciling government with liberty is still unsolved. Even our own country which in this respect is in advance of all others is at this moment, according to Professor Burgess, stumbling in this process.

[6] "The Reconciliation of Government with Liberty" by John Burgess, 1915. The whole volume, Especially pp. 148-149.

The Haitian "people," then, employing the word in the popular sense were but recently from barbarism, and the little education they had received

politically had been obtained through war; an excellent school perhaps for the training of leaders in the mere matters of preservation and order, but of almost no benefit in the development of the common people; although it is related by St. Remy, that Rigaud established schools in his army to have his soldiers taught to read and write. This ex-slave population of half a million souls, had been replaced during the later period of its existence as slaves, about every twenty years with fresh arrivals from Africa.⁷

[7] "Roosevelt et Haiti." A. Firmin p. 245.

No one expected the self-liberated people of Haiti to set up and maintain a stable government. All history was against such a phenomenon. If it required for England, the most fortunately situated of all the modern nations a period of nearly ten centuries to reach stable government, how could Haiti with its population of ex-barbarians and ex-slaves be expected to perform at once so brilliant a feat? Is Haiti, because it is black, expected to do the impossible? Firmin says at the time of which we speak, there was scarcely a person who did not ridicule the idea that Dessalines and his associates should even think they could create a country and govern it independent of foreign control. The statesmen of France were so sure that these people would fail, simply because of racial weakness, that they confidently expected the colony to return to France. They had not given up this hope ten years later; for in 1814 when the island was divided in government, these statesmen proposed to both Christophe who governed in the North, and to Petion who governed in the West that they should return the island to the mother country. They offered to these two colored rulers the highest grades in the French army and large sums of money; but neither Christophe nor Petion could be bought.⁸ In this connection, I may remark

on the authority of Professor Sloan (his standard work—Life of Napoleon) that it was the heroic resistance of Toussaint L'Ouverture and his compatriots that defeated Bonaparte's plan for the Western Hemisphere and gave us Louisiana. In a letter written by Robert G. Harper in March 1799,^{[9](#)} which has just reached my hands through the American Historical Society, I find the following: "Last summer, while Mr. Gerry was still in Paris, and the Directory was employing every artifice to keep him there, Hedouville was preparing to invade the southern states from St. Domingo, with an army of blacks; which was to be landed with a large supply of officers, arms and ammunition, to excite an insurrection among the Negroes by means of missionaries previously sent, and first to subjugate the country by their assistance, then plunder and lay it waste. For the execution of this scheme, he waited only till the English should evacuate a certain port in the island which lay most convenient for the expedition; but he was interrupted by a black general of the name of Toussaint, who drove him from the island, compelled him to embark for France and took the whole authority into his own hands."

[\[8\]](#) "The West Indies and Louisiana in one hemisphere, in the other the Cape of Good Hope, Egypt and a portion of India, with St. Helena and Malta as ports of call—of this he dreamed, but the failure to secure San Domingo and England's evident intention to keep Malta, combined to topple the whole cloud castle into ruins?"

"The magnificent French plan of American colonization having lost the supports of both San Domingo and Louisiana, collapsed leaving no trace."

—Page 289 et seq.

[9] American Historical Magazine. December, 1915.

The independence of Haiti has been maintained as we have seen for one hundred and eleven years. In 1873 while visiting that country and looking upon her lofty hills, and upon the toiling people at their base, I fancied an appealing cry coming from these masses and I interpreted that cry in the following lines:

"The cry of souls for bread;
The cry of men and woman who
Have done great deeds and
Whose guiding star is liberty.
Who strong in their right arms,
Have won a name, a place,
And who with valor true will dare defend
That place and sooner die
Than wear the badge of slave."

On Sunday, June 15, 1873, I witnessed, in Port-au-Prince a great religious procession to pray against a return of fire upon their city. This is no unusual thing in a Roman Catholic city, although to an American it seems a waste of piety. Mr. Douglass in his graphic way in a private letter to me thus describes one of their outpourings of religious enthusiasm which occurred while he served in Port-au-Prince as United States Minister: "Yesterday," he says, "all over town, a great racket was heard of people driving the devil out of their houses by beating on their doors. On one account I was glad of their efforts to get rid of the devil although I was aware that the devil would laugh at this method of ridding the city of his presence. This is Holy week

here and I must say that on account of the stillness, the absence of the tom tom and the apparent serenity of the people, I could wish holy week continued indefinitely."

With the impression of that religious procession upon my young and inexperienced mind I wrote then in my journal: "Poor, poor Haiti! As a nation it is the veriest humbug; and yet there is something splendid about it." Fourteen days later I was able to write differently. I was riding on the road leading from L'Arcahai to St. Mark in company with some young friends. "On both sides of the road were luxuriant fields of sweet potatoes, bananas and sugar cane. Mountain streams were sending down their pure waters by which the plains below were irrigated. It was the fête of St. Pierre at the bourg, and on the road we met hundreds of people, some on foot, some on donkeys, and many on beautiful horses with most magnificent saddles and trappings, all going to the bourg. Fine country gentlemen, mounted on these steeds and riding as though born on horseback, pass us very frequently, every one of whom lifts his hat entirely off his head and gives the Bon jour, monsieur. Ladies dressed in snowy white dash by us at full gallop, but never so fast, but they have time to say in the sweetest voice: Bon jour, monsieur."

The constitution of Haiti contains a very complete Bill of Rights bearing testimony to the idea of liberty, but unfortunately there is nowhere any adequate defense of these rights against the encroachment of government. There is no check and balance system between executive and legislative departments; nor can the courts guarantee the rights of individuals. Governments we know are ever ready to encroach; typographical demagogues ever ready to arise in professed defense of constitutional rights; hence revolutions. The soul of Haiti is military. General Legitime speaking before the Universal Races Congress in London in 1911 said:

"Born in troublous time, Haiti is essentially a military state; and though he cannot entertain ideas of conquest, its head must nevertheless retain the character of a noble gendarme, the guardian of its institutions." Still there is another side. The great statesman Firmin was not a devotee of militarism. He deplored the existence of so much of it which he described as a burden falling heavily upon the rural classes. He says the "only thing the soldier learns by his long military apprenticeship is passive obedience, the absence of all moral initiative, of all exercise of personal volition, with the complete annulment of the view of human liberty struggling against injustice and wrong. When a Haitian wearing epaulettes says to you, I am a soldier, that means that he is ready to commit the most horrible crimes, to rob, to burn, to kill, just so he has the order to do so from his immediate chief." There is in fact a decidedly brilliant literary element in Haiti, including editors, authors and lawyers who are not so thoroughly military as the general trend of her history would lead us to believe. It is now time to inquire in what light Haiti regards herself in relation to the whole Negro Race. What is her mission as she understands it?

The first man I shall call upon in this respect will be our author Antenor Firmin. The following facts will show that he is entitled to a hearing. He was born in Haiti in 1851. Received all of his education there; a lawyer by profession, in 1889 he was a member of their Constitutional Convention, was Minister of Finance and of Foreign relations 1889-1891, as Mr. Blaine had good reason to know; was Minister to Paris 1900-1902; a profound scholar and a very respectable writer, possessed of a large share of common sense philosophy. He says in the preface of his book on Roosevelt and Haiti, written while in exile at Saint Thomas: "No people any more than the individual can live, make progress, and advance with sustained ardor in the walks of civilization, without an end, an ideal, which leads them onward

in all the wanderings of their existence. The end is ordinarily more evident, more clear, before the will of the individual; for nations, it is some times veiled in indefinite form; but it exists always, and acts imperiously, like magnetism terrestrial impressing an irresistible direction upon the magnetic needle in spite of the fog which conceals on the horizon the point of orientation. This ideal for Haiti is the sublime effort of a little people striving for the rehabilitation of whole race of men, an effort so noble and so worthy that each one of those who participates in it may justly regard himself as an apostle." Edmund Paul, another brilliant Haitian whose life went out too soon, wrote that the end or goal of this young nation is to prove the aptitude of the whole African race to the present civilization, "An end he says, powerful, gigantesque, capable of devouring generations, ever worthy to demand and to employ all of our activity."

"In Haiti," says the late Minister Price, "the black man is in possession of national responsibility. In Haiti he is called upon to form his character, and to conduct his movements at his own risk; he receives directly the consequences, and suffers the deplorable results, of his own errors and passions. He is not being *led along* in civilization; he moves on the road by his own efforts. He is marching without any support on which to lean; without any other force than his own. And when he shall become sufficiently advanced to remove all doubt; when he shall become sufficiently free from his errors, and shall have sufficiently conquered his passions which now retard his steps, it will be evident that he has accomplished this result because he willed it, and because he had within his being the necessary force for its accomplishment." According to Mr. Price there will be no one who can say of the Haitians: "We civilized and educated you; none who can say: without us you would soon have relapsed into African barbarism." Haiti's mission as he understood it is to rehabilitate

the Negro race. His dying gift to mankind was his splendid work on the Rehabilitation of the Black Race by the Republic of Haiti.

It is Price who says: "The Negro who shows his dainty hands and his little feet, and is piqued because, with adornments the aristocrats, who are also adorned with little hands little feet do not open their doors to him is an ignoramus and a poltroon, and is still a slave."

I shall close this paper with the counsel of Haiti to the African Race as voiced by the same author.

"As to the children of the African race, I could wish to see them everywhere, disdain public offices, in order that they might enter into civilization not by the door that the slaveocrats and politicians point out, but by that door through which has passed the real white democracy—knowledge and industry. When one is the son of a serf, who but yesterday was beaten and cuffed without mercy, and aspires to manhood, it is the workman's blouse that he must put on. The blouse leads to the conventional black and white gloves. But he who wishes to commence by a black suit, ought to put a napkin on his arm, and place himself as a servant, behind the man who wears a blouse.

"Haitians, all, and Negro of the continent of America and of all the adjacent islands; My Brethren! Learn it at once, and never forget it. The free man is the one who takes the responsibility? of his own proper well-being. He has nothing to ask, nothing to solicit, neither from the pity nor the generosity of his fellows. He is bound to count upon himself, and upon himself alone, to turn aside or to overcome, whatever obstacles that lie in the way of his happiness. Strength and skill are for the free man absolute necessities."

Thus has Haiti spoken by her actions and in the words of her eminent statesmen given to us a message of lofty purpose, of sorrowful struggle, of

hardy endurance, and we trust of willingness to learn from events.



Lafayette M. Hershaw. The Status of the Free Negro Prior to 1860

The difficulty surrounding a proper understanding of any question consists in the fact that self-interest is more than likely to enter to darken the vision. It is seldom that men differ about matters or have a difficulty in understanding matters which do not affect their vanity, their pride, their ambition or their material belongings. The truth concerning any matter which is the subject of controversy can be reached with accuracy in proportion as it is free from these matters. A question of justice, opportunity and humane consideration for persons wholly or partly of African origin is influenced entirely by considerations of the kind just mentioned. If men were not obsessed by the phantom of race superiority and of local vanity and group consciousness, and more than all by the propensity to make gain out of the misfortunes and injustices of conditions, what is known as the Negro question would vanish into thin air. All forms of oppression, caste, proscription and distinction have their origin in the desire and purpose of a man or set of men to improve their condition at the expense of others. If it had not been believed and indeed demonstrated that the subjection of the black man would prove economically profitable to the white man or that he would gain some other fancied advantage from the degradation of the black man we should never have had African slavery together with its attendant chain of ills which afflict the body politic even unto this hour.

That oppression and tyranny wrong both those who practice them and those upon whom they are inflicted is proved by illustrations taken both from the field of economics and the field of intellectual and moral consciousness. In all those parts of the world where all the people approach most nearly a common standard of economic, intellectual and moral excellence there we find the greatest advance in that which we call civilization, for the want of a better term to describe human progress and advance. Wherever we find any considerable group of people residing in the same or contiguous territory who do not enjoy equality of right and opportunity in those things which governments are instituted to conserve, we find that the greater group which denies them these inalienable rights paralyzed in its economic, intellectual and moral growth. On no other ground can we account for the emphatic differences in achievement, in literature, art, science, invention, and economic progress between the white people of the North and the white people of the South. Reasoning from analogy and from the examples which history gives of the achievement of the white race in the world it would be the most reasonable thing to expect that due to variety of soil, favorableness of climate, and the general beneficence of nature, that the white people living in the zone comprising what is commonly designated as the Southern States would excel their Northern brethren in all the arts and achievements of civilization. We should naturally expect to find there the poets, the painters, the sculptors, the inventors and the great organizers of enterprise. Elsewhere in the world in the midst of similar conditions of soil and climate, we find the white race excelling and leading the world in these particulars. The white people inhabiting the South are of the same ethnic type, and have in general the same group consciousness and aspiration. How else can we account for the fact that they have contributed less than their kinsmen in proportion to

numbers to the sum of human knowledge, happiness and liberty, if not by the fact that they have suffered the inevitable handicap incident to an environment in which large numbers of human beings suffer inequality and subordination?

But for the difference which has been historically accentuated in North America between white and black which difference has inflicted much of suffering upon both races, it would not be necessary to consider such a subject as the citizenship status of the free Negro prior to 1860. Before the Constitution of the United States was amended by the addition thereto of the Fourteenth Amendment the statement that "The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States" was the only definite deliverance to be found in that instrument in relation to the subject of citizenship. In other words there was no national definition of citizenship, and up to the time of the deliverance of the Dred Scott Decision in 1857, there had been no comprehensive treatment of the subject in adjudications by the Supreme Court of the United States. The mention of the term "citizens" in the Constitution in the quotation just given indicates that it had a meaning of such generally accepted significance that definition was not necessary. Presumably citizenship conveyed then, as it conveys now, an idea exactly the opposite of that conveyed by the term slavery. A slave everywhere in the world was understood to be a person who was absolved from allegiance, and was not due protection as that term is ordinarily understood, and who could not invoke ordinary legal process nor own property; a citizen was a person who owed allegiance, was entitled to protection, had the right to invoke all the processes of the law, could become the owner of property, and possibly, if not a woman or a child, exercise the right of the elective franchise. Such was the common understanding of the term citizen at the adoption of the Constitution, and

such is substantially the understanding of that term at the present date. However, due to the presence of the Negro in the body politic, the exigencies of the situation suggested an interpretation of the term citizen which might not otherwise have existed, but for the presence of the Negro. The exigency grew out of the fact that toward the end of the eighteenth century and the beginning of the nineteenth there

grew into the minds of men the conception that slavery was a condition appertaining to black men alone, that color was an unmistakable proof of the condition of a slave, and that the fact that one was of African descent carried with it this inevitable social degradation. In the decisions of the courts of a number of the States we find this principle enunciated. In North Carolina the Supreme Court of that State, in 1828, decided that "The presumption of slavery arises from a black African complexion." In 1839, the Supreme Court of Indiana, in passing upon the constitutionality of the law entitled: "An act concerning free Negroes and Mulattoes and slaves," held that where a Negro laid claim to freedom the burden of proof was on him to show it inasmuch as persons of the African race were presumed to be slaves. In 1842, the Supreme Court of Ohio decided that under the law of that State "Color alone is sufficient to indicate a Negro's inability to testify against a white man. It has always been admitted that our political institutions embrace the white population only. Persons of color were not recognized as having any political existence; they had no agency in our political organizations, and possessed no political rights under it. Two or three of the States form exceptions. The constitutions of fourteen expressly exclude persons of color; and in the balance of the States they are excluded on the grounds that they were never recognized as part of the body politic." (Thatcher vs. Hawk, 4th Ohio, Rep., 351.) While this opinion expressed a widely prevalent sentiment at that time I have been unable to find a decision

of any court in any of the original thirteen States north of Maryland, except Connecticut, which expresses this view. In their moral and intellectual nature the inhabitants of Connecticut exhibit many wide differences from the inhabitants of the rest of New England. These citations show how thoroughly the conception of the difference arising from the difference of color was imbedded in the mind at that time. Such instances of judicial interpretation were to be found in all of the slave States, and in those States which were carved out of the northwest territory, which Virginia ceded to the general government in 1787. In this connection it is pertinent to observe that it is the most natural thing in the world that the States carved out of this northwest territory should have followed not only the legal system of the parent State, but should have adopted many of its practices and modes of thought, and passed them on to succeeding generations.

From the quotations already made it can be seen that to be a colored person was to suffer from the presumption of being a slave, and that to be a free colored person was to be in a condition not of freedom, but of lessened servitude. To be a free colored person was not to possess the citizenship of the world any more than to be a Christian today is evidence that one is an imitator of Christ. In actual practice the term "free colored person" embraced the idea of freedom from personal service to a specified owner and little else, particularly in the slave-holding States. The attitude of these States is well expressed in the following quotation from John C. Calhoun: "I hold that in the present state of civilization, where two races of different origin, and distinguished by color, and other physical differences, as well as intellectual, are brought together the relation now existing in the slave-holding States between the two, is, instead of an evil, a good—a positive good. I fearlessly assert that the existing relations between the two races in the South forms the most solid and durable foundation on which to rear free

and stable political institutions (Works of Calhoun, Vol. 2, p. 630)." Thus by legal enactment, judicial interpretation and orderly expressed public opinion, race if it be African was the badge of inferiority and slavery. This was generally true throughout the country and yet a careful and somewhat thorough examination of the statutes, legal decisions, and systematic treatises relating to the law of slavery will convince any fair-minded person that the term free colored person carried with it less of negation of right in the Northern States where slavery had ceased to exist than in the Southern States where it still flourished.

At the close of the revolution, slavery existed in most of the colonies, if not all, and their statute books contained laws relating to that condition, and to the condition of "free persons of color." However, as time passed and the institution of slavery disappeared, we find these laws disappearing or becoming greatly modified or mitigated in their provisions. For instance, March 26, 1783, Massachusetts passed a law forbidding an African or Negro to tarry within the commonwealth for a longer time than two months unless such person could produce a certificate from the secretary of State of which such person claimed to be a citizen, showing that he was such, and that where such persons did not have the required certificate they should be ordered to depart from the State, and upon failure to do so be committed to any house of correction, and that such punishment should be repeated whenever and as often as the order to depart was disobeyed. This law was repealed, however, in 1786. It seems that slavery was abolished in Massachusetts by operation of the constitution of 1780, which declares that "All men are born free and equal." Harry St. George Tucker, president of the Virginia Court of Appeals, said in 1833, speaking of this constitutional utterance, that "We should be disposed to take this declaration less as an abstraction than we regard that which is contained in our own bill of rights"

(5th Leigh Rep., 622). By 1786, it appears that Massachusetts had abolished all distinctions in law based on race except that in relation to marriage, which appears to have been repealed in 1843. In 1833, Connecticut enacted a law forbidding the setting up or establishment of any school, academy or literary institution for the instruction or education of colored persons who were not inhabitants of the State. This law was repealed in 1838. The constitution of Rhode Island of 1843, conferred the elective franchise on persons of the male sex qualified by residence and property without distinction of color. In New Hampshire the constitution of 1783 contains the principle that all men are born equally free, and no distinction on account of color is found in any of her statutes except in a law of 1792, which specified that enlistment in the militia should be confined to white people. In the law of 1857, relating to the subject of militia, color is not mentioned. Neither in the constitution nor laws of Vermont does one find for this period any distinction based on color, so that in Vermont the term "free colored person" had no existence and consequently no meaning. In Maine no distinctions based on color are to be found for the period under consideration either in the constitution or the statutes. In Pennsylvania colored people exercised the elective franchise and enjoyed full citizenship with the whites up to 1838, when the elective franchise, by the constitution of that year, was confined to whites. Presumably free colored people exercised the suffrage in New Jersey up to 1844, as there appears no limitation of suffrage on account of color prior to its mention in the constitution of that year. New York, in an act of the legislature of 1799, provided for gradual emancipation of the slaves, and by an act of 1811 it required "free colored people" to carry certificates of their freedom as proofs of their claim thereto. In 1814 the legislature of the State authorized the raising of two regiments of colored soldiers to be officered by white

men. In 1823, Negroes who resided in the State three years and possessed a free-hold estate of the assessed value of two hundred and fifty dollars were entitled to exercise the elective franchise, a requirement not imposed upon white people.

It is interesting to note that up to 1723, free colored people appear to have exercised the elective franchise equally with the whites in Virginia. The colonial constitution of that year limited its exercise to white people, and the free colored people never voted again until the adoption of the Underwood or reconstruction constitution. Besides this, contrary to conditions above described in the Northern States the laws in relation to free colored people grew harsher and harsher until 1831, when we find a statute prohibiting meetings for teaching free Negroes or mulattoes reading or writing. In 1832, free Negroes were forbidden to preach the gospel. In 1834 free Negroes were forbidden to immigrate into the State. In 1838 free Negroes leaving the State to be educated were forbidden to return. In 1851, the constitution of Virginia of that year, in Sec. 5, Art. 19, provided: That slaves hereafter emancipated shall forfeit their freedom by remaining in the commonwealth more than twelve months, and in 1856, the legislature of Virginia passed an act providing that free Negroes might voluntarily make agreements to become slaves and that such agreement should be binding.

In North Carolina free colored people seem to have exercised most of the rights of white people including that of voting, until 1835, when the right to vote was confined to persons of the white race. In all of the slave States the free colored man was hampered by legislative provisions exactly like or very similar to those just cited as existing in Virginia. In none of these States could free colored people hold the legal title to real property, in none of them did they have the right of public assembly, the right to bear arms or the right to carry on collectively the work of education. In few of

them did they even have the right to preach the gospel, and where they did preach it was by favor and permission, and not by right. Of all these Southern slave-holding States Maryland ruled its free colored people with something suggestive of humanity.

It will be seen from this hasty and unsatisfactory review of a great mass of statutes, decisions, and treatises that the condition of the free colored man north of Mason and Dixon's line improved in the main from the close of the revolution to 1860, and that south of Mason and Dixon's line his condition grew worse from the close of the revolution down to 1860.

In the West, where new States were forming, there was, of course, the distinction of race. The settlers who went into these new communities went there to establish white communities and they passed laws forbidding the immigration of free colored people into them. We find statutes in Ohio, Indiana, Illinois, Michigan, Kansas, and Oregon, forbidding the immigration of free Negroes. It seems, however, that there was never a very strong public sentiment insisting upon the enforcement of these laws. As a matter of fact there was a small active and effective sentiment which practically nullified the existence of them, for in all of these States we find, especially after the enactment of the fugitive slave law of 1850, a most friendly sentiment toward the unfortunate colored man whether slave or free.

The study of the statutes and conditions of more than a half century ago is not only a matter of curiosity, but a matter of very practical concern, since in these latter days another body of laws, and legal decisions based upon distinction of race have come into existence, and yet others are threatened.



Arthur A. Schomburg. The Economic Contribution by the Negro to America

The services rendered by Negroes in America from the discovery of the islands beyond the Pillars of Hercules by Christopher Columbus to the end of the eighteenth century, make a chapter of history transcending in importance anything which has taken place in the old world. The quaint times and scarcity of willing men among the aboriginal Indians to help the Spaniards to despoil their lands in the rapacious quest of gold brought about the early ruin of flourishing communities of aboriginal tribes in the several islands. So alarming was this state of affairs that Father Las Casas, known as the Apostle of the Indians, interceded in their behalf at the Spanish court in order to ameliorate their unfortunate condition. He pleaded for Negroes to take their places as the blacks were a very hardy and robust race; to this plea the great and humanitarian Cardinal Ximenes was opposed; for he could not justify the substitution of one race for another in what was in itself a wrong. The Cardinal having been overruled, the Slave Trade was instituted and the first Negroes were brought to Santo Domingo. They were not the untutored savages we are expected to believe from modern histories. There existed in Sevilla, Spain, as early as 1475, a large number of Negro slaves, who had been brought from the coasts of North Africa and Guinea, and their one-fifth tribute to the coffers of the state formed a very nice sum of money. This practice of importing Negroes, which had been in vogue during the Arab dominion of Spain, continued to increase to such an extent

that when in the year of 1474 a royal decree still extant chronicles the appointment of a Negro known as Juan de Valladolid as mayor of the Negro colony situated in the outskirts of the said city. From this colony of Negroes who could speak the Spanish language, and were familiar with their customs, came the first batch of slaves shipped to Santo Domingo. It must also be borne in mind that 45 years before, in 1370, King Henry of Portugal had commenced his explorations, the Catalans and Normans had frequented the coasts of Africa as far as the Tropic of Cancer, and according to Diego Ortiz de Zuniga, it is known that from the times of Archbishop Gonzalo de Mena (1400) there existed Negro slaves in Sevilla. There is no reason to doubt that a large number of their descendants had already been born in Europe prior to 1500, because the royal dispensations in that year state that the immigration of Negro slaves to Santo Domingo was prohibited except in case of those who were born while in possession of Christians. These historical facts induce us to believe that during that period there was in Europe a larger number of Negroes than we generally suppose or care to believe.

At the time that the slave trade had commenced to occupy the mind of the Hawkins malefactors and the British nation under Queen Elizabeth, Barbarossa had already subjected the mulatto King of Morocco to the payment of a tribute of \$1,000,000 in gold dust—and 40 Negro merchants without any hesitation helped the king out of the dangers that confronted his people. When the Moor Zegri was humiliated by the Spanish Commander Cisneros in 1499 and the Arab books destroyed in Granada, Marmol states that less than 1,025,000 tomes on religion, politics, jurisprudence, manuscripts illuminated and worked in silver and gold were consigned to the fires. There remained 3,000 Moorish soldiers under command of a Negro captain whose intrepid heroism and valor was shown by the charges

and counter charges he was able to repel. When unable to prevent the utter annihilation of his band by superior forces under Cifuentes, the Negro captain refused to surrender and jumped headlong from a fort. (Alcatara's History, Granada, pp. 165-6.) And this happened seven years after the discovery of America by Columbus.

The conditions of the new world were such that the Spaniards who had spent most of their wealth in the unprofitable civil and Arab wars, lost no time after hearing wonderful stories of untold wealth to requisition not only the Negroes of Seville, but to embark in the lucrative enterprise of human Negroes from the West Coast of Africa, and ships which were engaged in man-hunting poured their human freight into Hispaniola. It was not long after that the Spanish Negroes belonging to Diego Columbus, revolted, and the first insurrection, taking place among the very property of the discoverer's offspring, was suppressed by the military after killing the leaders. The prosperity of the colonies soon became apparent in the enormous number of Spanish ships with their precious cargoes arriving in the Spanish ports. The Spanish people were wild and in an ecstasy of joy to engage in the colonial enterprise, and as ships entered upon the perilous voyages of discovery the Africans were gathered to do the work for which no historian or economist has given them the credit which is their due for blazing the path of wealth into which the nations of Europe have ridden upon the lucrative backs of the Africans. The clearing of the forests from dangerous animals and poisonous insects, making with the awakening of each succeeding spring the virgin earth a paradise that has supported millions of European parasites; the working of the mines for precious metals that fed the envy of other powerful nations which questioned the right of the Spaniards to conquest under the banner of the Christian Church, and induced them to scramble and fight for their colonial honors.

No sooner than Santo Domingo was found to be a paradise of wealth than the other islands were made ready for the unwilling African. He was carried to the mainland of Panama, where Balboa was surprised to find a colony of Negroes whose origin has baffled the mind of the most learned men of that age. To this day no solution has been found for the problem of the coming of these Negroes of Quareca. Gomora says, "That Conquistador entered the Province of Quareca; he found no gold, but some blacks who were slaves of the lord of the place. He asked this lord whence he had received them, who replied that men of that color lived near the place, with whom they were constantly at war. "These Negroes," adds Gomora, "exactly resemble those of the Guinea; and no others have since been seen in America. It may be stated here that every hypothesis has been advanced to show that these men must have been people other than Negroes, but since the natives of the kingdoms of Congo and Guinea were known to have enjoyed friendly relations with each other and sailed the rivers in large oared boats, it is very probable that some of them crossed the Atlantic in like manner as the Caribs in their piraguas traveled from the islands to the mainland and vice versa. The nearest distance from Brazil to Africa is along the Tropic of Cancer, and any number of large boats may have lost their bearing in a storm and got ship-wrecked on the American mainland. This hypothesis is well within the range of probability in view of the fact that the trade winds blow from east to west and the Gulf Stream flows rapidly, and is noted for periodical variation in its course.

The Negroes that were originally carried into Santo Domingo from Spain became devoted to the early priests, for it must be conceded that the Jesuits were the friends who maintained a benevolent attitude toward these outcast sons of men. One of these Negroes, known as Estevanico, was the discoverer of the Seven Cities of Cibola, and what is known as Arizona and

New Mexico. Negroes were in Mexico with the vanguard of the Spaniards, and to that country must be credited one of the earliest Negro poets. He lived in Mexico City, and was, by trade, a carpenter and maker of artificial flowers, and was always sought by the elite, because of his ready wit and quickness to rhyme on any theme given him.

Wherever the English ruled we have had to combat a very prejudiced and arrogant system of oppression. In the Spanish and French colonies the rule was milder, in consequence of a system of judicial laws which predicated a better understanding as a solution of the complex relations between master and slave. The English have shown by their rule in the Island of Trinidad how much regard they have had for the rights of others guaranteed by treaty. For a case in point we may refer to the treaty of capitulation between the Spaniards and the English that took place February 18th, 1797. Article 12 of this treaty reads: "The colored people, who have been acknowledged as such by the laws of Spain, shall be protected in their liberty, persons and property, like other inhabitants; they taking the oath of allegiance, meaning themselves as becomes good and peaceable subjects of His Britanic Majesty" (16). The way the British respected this "Scrap of Paper" is shown in a book written by a free mulatto, a graduate of the Edinburgh University, and printed in London in 1824. Says this anonymous author: "And even the Spanish governor saw his country about to be divested of a possession she had held ever since the third voyage of Columbus, he did not forget the faith she had plighted to the colored population, but exacted from the invaders security for the continuance of the equality of rights and privileges with the whites by the 12th article of the capitulation" (p. 16).

It would have been a glory to Britain to have emulated in those days the benevolent plan of France and Spain in improving the condition of their

slaves; and to open a way for the admission of reason, religion, liberty and law among creatures of our kind who were deprived of every advantage, of every privilege, which as partakers of our common nature they were capable of and entitled to (Ramsay).

We have been instructed to look at the Negro as "idle, worthless, indolent and disloyal," but a careful examination of the West Indies and South America does not show this to be true. Many instances of advancement by hard industry can be noted in any of the many spots of the New World. There is not a single field of industrial activity in which the descendants of the African have not contributed their mite toward an improvement of the conditions which the gold seekers and pleasure hunters were wont to overlook. The commercial activities, the irrigation of fields, the working of the mines where the labor of Negro slaves and free men was paramount, the untold number of ships loaded down with merchandise and precious metals wending their way to Europe to support monarchies and provide pleasure for parasites, all this depended upon the unrequited toil of Negroes, which cannot be computed in dollars and cents because it would form a ladder, like Jacob's, which would reach to the very gates of Heaven.

Under the institution of slavery which curbed the aspirations of the Negro, it was not possible to expect the race to have shown any capacity except for hard labor in the fields which the lash accelerated. In most islands there was nothing else but agriculture fields to be cleared and developed with religion to mitigate and console the workers. The profits which were uppermost in the minds of the masters were gathered regularly and yielded handsomely.

The African people have been one of the earliest acquainted with cotton. A careful examination of available historical material shows that while Europe was still dressing in goat skins and grass goods the Negro

peoples of Africa had been using cotton goods. Miss Kingsley relates that the cloth loom was invented by natives of the Eboe tribe, but many varieties of looms were common to the people of the Soudan. The prevailing color of the cloth from Guinea is blue and it is distinctly quaint, so enduring and pleasing that it has been handed down from the hoary ages to the present day. The dyes of the natives obtained from vegetable matter and other unknown primitive processes, have always won the admiration of the appreciative world. Europeans have admired the quality and durability of these cloths. The work of African looms in their primitive frames can be seen in the Museums of Natural History in London, Paris, Berlin and New York. They are indeed fine specimens of African handiwork and authorities have said that they would do credit to any Manchester or Birmingham looms.

It is said that native cloth manufactured at Kano is not very old and that it probably came from the Songhay country, but according to El Bekri, the Arab historian, and other ancient geographers, the art of weaving was very flourishing on the Upper Nile, especially in the town of Silla from very ancient times and as early as the eleventh century, the cotton cloth was called in this region by the same name it bears to this day, namely, "shigge."

The English West Indies exported to Britain during the year 1760 9,535,010 pounds of cotton. By 1787 this amount had increased to 18,716,445 pounds; in 1801 to 42,090,765, and in 1811 it was 41,735,555, according to William Irving, Inspector General of the London Customhouse.

It has been stated that just before the war of American independence the slaves in the sugar colonies did not exceed the fortieth part of the inhabitants of the British Empire, yet they contributed in that neglected state perhaps a sixth part of the revenue. The British Isles contained a

population of nearly 11,500,000; North America, 2,600,000 with 400,000 slaves, which made 3,000,000; the West Indies 82,000 freemen and 418,000 slaves.

The Negroes under the terrifying and debasing influence of slavery were able to improve their condition by that cheerful spirit which holds them together even in these days of dark clouds, with a silver lining. The cheerfulness of these sons of Africa has been their redeeming quality through all their privations and sufferings; their chants and songs, whether in the hearing of their masters or among themselves, were full of soul and feeling. They kept body and soul together after the arduous day's labor under the torrid rays of the sun. Whereas the Indians gave way under the milder system of slavery, the Negroes grew stronger under its despotism. They were able in the production of sugar cane to become experts in the tempering of the cane juice for the various degrees of sugar, which today require analytical chemists to supervise its improved manufacture and Negroes were in charge of this delicate branch of the industry on many plantations. In the distillation of rum they were proficient and many were excellent mechanics.

In the production of cocoa, in Venezuela, Suriname and Trinidad, the labor of Negroes gave it such an impetus and stability that the eminent Humboldt, in his travels through South America could not but speak in the highest terms of those plantations that devoted their time to the improvement of this industry.

Since the bringing of the Mocha coffee into Santo Domingo as an experiment, with the brawny arm of the black son of toil the production of coffee has reached the incredible amount of 100 millions of pounds, and, in Brazil, where to balance the supply and demand the government provides

an excellent system which permits the exportation of only the amount necessary for the world's consumption each year.

The pearl fisheries of America lost their commercial importance with the wave of Emancipation by the nations whose souls were steeped in ignominious sin. But in the earliest days it was one of the most lucrative industries. The work was done exclusively by Negroes who were expert swimmers and divers, capable of holding their breath a long time in ten or fifteen fathoms of briny water, while searching for pearl-bearing shells. There was always great danger from man-eating sharks and the octopus, which killed and mangled many expert divers. In numberless Spanish galleons were carried the riches which have been reported from time to time in official papers as having paid the fifths to the coffers of the state. For instance, Southey says that "a fleet that sailed from Hispaniola in 1526 carried to Spain 501,082 gold dollars, 350 marks of ordinary pearls, 183 Cubagua pearls and 5 gold stones."

In the field of arms there is no question whatever in the mind of the present generation whether the Negroes have added any glory to the respective nations under which they fought, or, when for their self-preservation it was necessary to fight against Spain, Holland, France and Britain. One of the earliest successful insurrections was that of Chief Araby in the year 16— and in 1772-7, before the American war of independence, the Negroes of Suriname took to the hills and fought the Hollanders tooth and nail for five consecutive years. The Spaniards in Santo Domingo were defeated, Great Britain was humiliated and obtained success only when she followed General Abercrombie and Sir John Moore's advice, and employed Negro troops under promises of manumission as is shown in the St. Lucia campaign. The first attempt to employ these troops brought about a fierce outcry of protest in which the several island legislatures, especially those of

Barbadoes and Jamaica "poured forth the most prophetic declaration of innumerable evils to come if the British government persisted in its purpose to substitute even in part, black for white soldiers."

The formation of the First West India Regiment under the British was the aftermath of the Savannah war in 1779. "It was made up of white loyalists and Negro slaves" and "so well entertained that in the year 1816 there were eight regiments in existence. In Jamaica there were stationed the 2d Regiment, with 198 sergeants and 3,050 blacks, and the 5th Regiment was stationed at Bahamas with rank and file of 4,526 during the year 1816. Their formation was due to the ravages of disease among the European forces, for during the years 1796-1802 were lost 17,173 men of the original force of 19,676 under Major General Sir John Moore, which sailed from England to put down the Negro spirit that had its birth in Haiti.

But it was not only Haiti that was worrying the British. Jamaica with the Maroons was another problem without a radical solution until Major General Walpole promised them protection under a secret treaty which was moderate in its language, but painful in the method of its application, just as the British have always been when dealing with the Negro race. It must be said in fairness to General Walpole that he was opposed to the cruelties practiced on the Maroons after they had surrendered their arms and confided in his good faith for a strict compliance with the terms of the treaty. Walpole said he "felt that a treaty even with savages should be observed" (p. 236). But notwithstanding the evil spirit towards the Maroons their uprising has brought about a better feeling and respect to the black people of Jamaica and, because of this material spirit, it must be admitted they enjoy to this day a larger measure of freedom and economic privileges than the other West Indian islands under the British rule.

The name of Haiti will always stimulate us to revere the memory of men who have stamped their names on the scroll of time, for not only did that island strike the first effective blow for the liberation of the black slave, but, having accomplished this purpose, the Haitians aided in the liberation of all America from the yoke of Europe. The service rendered by President Petion to Simon Bolivar in making possible the freedom and independence of South America is splendidly shown in the granite and bronze monument which adorns the square in Caracas dedicated to the memory of the ablest Haitian president by the people of Venezuela.

Music found expression in the vibrating chord tempered with the dull thumping of drums in their characteristic rhythm which could be heard for miles during the night and in the peculiar songs and chants of the Negroes. To the white man who could not understand their customs it was barbaric and rude and was treated with indifference and at times with contempt. But it has been shown by Mrs. Kemble, who was a keen observer during her residence in Georgia, that the Negro songs had merit and that there was something mystic which could not easily open itself—its peculiar musical charm—to the white man. This music and chants were common to every part of America where the sons of Africa had been carried by the slave hunters, and even to this day musical instruments, peculiar to the original tribes, are extant in many of the islands beyond the seas.

During the evening slave seances took place when the master thought everything was silent and calm, because the field work had been satisfactorily performed and the harvest had been gathered and there was a profit which would carry him to Europe to squander it in riotous living. But at night, like the firefly, the Negro was recreated and refreshed in song his soul, and dreamed of a future freedom from the involuntary thralldom of which he was a victim.

The story tellers gathered a motley crowd around them and the hours of eventide were spent in instructive recitals of the Uncle Remus, Brer Rabbit and other folk-lore stories, the heritage of African minds. These stories are known in every vale and dale of joy and tears in America; they have soothed the hours of toil and consoled the broken-hearted. "They have been called the traditional literature of Africa. Some of the Uncle Remus stories would form no bad addition to the fairy stories of the world. But the race of old mammies or nurses who used to tell them to delighted youthful audiences is fast passing away"—in fact, have passed away—and we are satisfied, not knowing any better, to read them in the modern reconstructed form as given by Joel Chandler Harris and other poor imitators who have won fame and honor in the field of literature without incurring the onerous charge of imitation. Bosman refers to the Old Mammy or Anancy stories in his work on Africa, and it is said that in Accra "there are men who have a repertoire almost as copious as the Arabian Nights, and to which Europeans listen with curiosity and wonder, if not with admiration." Richard Burton was a great man and a distinguished writer, who agrees with Koelle, who says, "I was amongst them in their native land, on the soil which the feet of their fathers have trod, and heard them deliver in their own native tongue stirring extempore speeches, adorned with beautiful imagery, of half an hour or an hour's duration; or when I was writing from their dictation, sometimes two hours in succession, without having to correct a word or alter a construction in twenty or thirty pages; or when in Sierre Leone I attended examinations of the sons of liberated slaves (from America) in algebra, geometry, Latin, Greek, Hebrew, etc.—then, I confess, any other idea never entered my mind but that I had to do with *real men*". (Wit and Wisdom from West Africa.")

In Brazil, the Negro chieftain, Henrique Diaz, is revered for the able assistance which he rendered in checking the incursions of the Dutch, and Koster in his travels through that country speaks of Negro and mulatto regiments known as the Henrique regiments in memory of so worthy and capable a leader.

In the city of Paramaribo the Negro Gramman Quacy had the good fortune in 1730 to discover the valuable properties of the root known by the name of Quacie bitter. In 1761 it was made known to Linnaeus by d'Ahlbergand, the Swedish naturalist who had written a treatise upon it.

During the years 1811-12 the British government had reports from their various possessions in America exclusive of Jamaica, showing a slave population of 343,859 and 27,259 free men of color, so that about eight per cent of the total colored population were free. When we consider the handicap that slaves had under English law with its intricate and involved questions of entail we can appreciate the efforts of these reputed savages to have been able not only to achieve their freedom but to succeed in becoming an integral part of the country, with an eagle's foothold in agriculture.

Porto Bello and Cartagena in Colombia were the ports of entry for the slave trade, the channel by which not only Panama was supplied with Negroes but from whence the traders were allowed to bring with them such quantity of provisions as was thought necessary both for their own use and that of their slaves of both sexes. Here was the Appian road through which the Spaniards carried the slaves into Peru to work the gold mines; and they became so useful that in the celebrated Sanabria mines Negroes were used exclusively during the night and Indians in the day time. Ulloa, during his visit to Lima, found that people of African descent formed the greater part of the population of Lima, and they were, as a rule, mechanics and worked

side by side with the Europeans who did not consider the contact disgraceful to them, since cleanliness was the ruling passion of the Negroes.

General Pelage, "an agricultural slave" when General Moore stormed St. Lucia, was Governor of Guadeloupe until 1803, when he resigned and returned to France to lead his soldiers against Spain, where he was killed at the head of his regiment.

It is a remarkable fact that the first native American to be consecrated a Bishop was a Negro. He was Right Reverend Francisco Xavier de Luna y Victoria, Bishop of Panama, of which see he took possession in August, 1751. He founded and maintained the cathedral at his own expense, and was later removed to the see of Trujillo in Peru. His mother, who had been a slave devoted her time to the sale of charcoal in order to attain her ambition to see her son become an eminent man. This devotion has been characteristic of the African woman and every reward and praise won on the new continent has been due to her sacrifices.

In the Spanish countries under the more liberal manumission laws a very much higher proportion of free people of color existed from the very earliest times. In Cuba of the total population in 1811 about 274,000 were whites, 212,000 slaves and 114,000 free persons of color, rather less than two slaves to one freeman. In the United States at the same time the slave population of 1,191,364 is more than six times the free population of 186,446 (total U. S., 7,239,814). The conditions in Cuba were characteristic of the Spanish and Portuguese countries and explained the total abolition of slavery as well as the more rapid assimilation of the colored people in the economic and political life of those countries.

With the records such as this the Negro found himself at the close of the eighteenth century a vital factor in every phase of the development of Latin America. I have not attempted to treat his services in the Southern

States of the North American Union for the facts here are too well known to require discussion within the limits of the present article. Suffice it to say that the position which the Negro and his mixed progeny of European or Indian blood had won in South America, they have also earned, if even they have not as yet received, due recognition therefore in North America.

With a firm faith in our ability and the consciousness of our inalienable title to a worthy share in the development of the New World. We may look forward with confidence to the inevitable reward of industry sustained by the courage which demands that an honest toiler shall not be despoiled of the fruits of his labor. We may expect therefore that as Negro slavery began in the West Indies and South America and crept northward, so also will come to the United States the gradual dissolution of the problem of color in the general problems of a progressing human race.



William Pickens. The Constitutional Status of the Negro from 1860-1870

The second decade of the latter half of the nineteenth century was the most epochal period in American legal history since the time of the national constitution. So far as the American Negro is concerned, this period marks the greatest possible changes in legal and constitutional status. Three years before the opening of this decade the highest court of the nation had declared the Negro to have only the status of the lower animals, while at the close of the decade the Negro had acquired a status in the organic law of the land which entitled him to membership in the Supreme Court itself. In this period the Negro changed from a chattel to a person, from an animal to a man, from a slave to a citizen,—so far as the supreme law of the land is concerned.

This period also contains the two extremes on the scale of discriminations against the American Negro in statute law. Before this period there were comparatively few statutory discriminations against the black race in the Southern States. For in that section the Negro had no personal rights at law, and discriminatory statutes were not necessary. When a discrimination is made against a class in statute law, it is thereby implied that this class has at least some rights based on the fundamental law of the land. Therefore the legislative discriminations against black people before this period were found chiefly in the border states and in the "free" states against "free" Negroes,—a strange contradiction of terms.—But this

decade, from 1860 to 1870, also contains the extremes of the Negro's legal status in the South: at the opening of the decade stood the Negro slave, at the close stood the Negro senator; after the middle of this period the South passed the extreme "Black Laws," intended to nullify the effect of the Thirteenth Amendment as far as possible, while at the end of the decade came the Fifteenth Amendment, marking an epoch. These "Black Laws" of the South were enacted between 1865 and 1868 and were inspired by the ratification of the Thirteenth Amendment. They had for their models, it is said, the similar laws that had been passed in previous decades against the helpless "free" Negroes of the North and the border states. But they outdid the models.

These "Black Laws" are worth considering, for in them are found a sufficient cause and a very cogent reason for the Fourteenth and the Fifteenth Amendments. There is really no need for the charge that these two Amendments were the inspiration of revenge or of the desire for political advantage of the party in power. At any rate, such great products of statesmanship should stand on their merits, and not be condemned, even if it could be shown that they were originally based in unworthy motives. It does not lessen the beauty of the rose if the plant was sprouted in manure. But the argument of ultra-motive is unnecessary, for the "Black Laws" of the South were the immediate occasion, and doubtless the only efficient cause, of the Fourteenth Amendment. After the passage of the Thirteenth Amendment, if the former slave states had accorded the ex-slaves even half justice, it is very likely that the Negro's friends in Congress would have quickly forgotten him,—as they have since done in the face of the worst injustices. But it was not unnatural for the South, after the ratification of the Thirteenth Amendment which gave the Negro only the lowest degree of freedom, to try to pass systems of laws that would cause the Negro's

freedom to make as little change as possible in the social organism and in his relation to the white race. Not to have done so would have been evidence of superhuman foresight and self-control. From the standpoint of the Negro's interests, however, these laws were "black," not only in name and aim but in their very nature. Instead of being the property of a personally interested master, the Negro was to be converted into the slave of a much less sympathetic society in general. The "free" Negro's lot was to be much harder than that of the slave had been; for altho no longer entitled to "board and keep" from his employer, yet he was to be forbidden by law to move or to change his employment. This would have left his wages at the mercy of the employer. It is a law of economics that the mobility of labor is necessary to the normal regulation of wages. Some states absolutely forbade the freedmen to engage in skilled work, leaving for them only the most menial and least profitable occupations. In the famous old state of South Carolina the employer was to be allowed to inflict corporal punishment, or as the euphemism of the law put it, to "moderately correct" the servants. "Master" and "servant" were the terms used in these laws,—not employer and employee. The vagrancy laws and laws of apprenticeship were all of a nature to entrap the ignorant and take advantage of the weak. Famous old South Carolina even sought to regulate the amount of "politeness" due from the "servant" to the "master's family."

In the face of all these stereotyped facts, why should any honest student of history have to resort to any intangible and indefinite thing like a feeling of revenge or a desire for political and party advantage as an explanation of the motives of those who conceived and passed by the Fourteenth Amendment? This Amendment was passed by the friends of freedom to keep the Thirteenth Amendment from being a mere farce. They sought thereby to secure for the Negro the protecting power of the ballot, as

the only effective means of influencing his civil and political interests in a government like this. There was no thought or hope of making him dominant in a country that was predominantly white. But the backers of the Amendment sought to lead the state governments to this reasonable end by inducing rather than by compelling them. The effect of this amendment was to be based on impartial mathematics, and the choice was to be left to the majority of voters of the state. The state was simply not to have a power in the national government based on a population which the state itself did not recognize as a part of its own citizenry.

Up to 1865 nearly all the states of the Union had restricted the right to vote to white men. After the Negro was freed some Northern states voluntarily removed this restriction. The friends of freedom hoped that the Fourteenth Amendment would induce others to do so, by making it to the advantage of their national representative power. But from the ratification of the Amendment in 1868 to 1870 not a single state, with the sole exception of Minnesota, heeded the warning or yielded to the inducement of the suffrage clause of the Fourteenth Amendment. And it might be noted in passing that there were not enough Negroes in Minnesota to make any difference either way. Up to 1870 fourteen states still restricted the suffrage to white men. This obstinacy on the part of the reactionaries caused the friends of freedom in 1870 to ratify the Fifteenth Amendment, which substituted *must* for persuasion and virtually penalized discriminations against any race in the matter of the suffrage. What evidence is there that any of these steps were taken in a spirit of revenge? Revenge usually acts in haste and without waiting on the development of other sufficient causes. The persuasion of the Fourteenth Amendment was not resorted to till three years after the close of the war, and when there had risen the plainest need for even more than persuasion in the interests of justice and humanity. And

the Fifteenth Amendment did not appear till five years after the war, when even the Fourteenth Amendment had failed to persuade. Why should revenge wait so long and advance so reluctantly? It seems that the friends of freedom, who had the political power in their hands, were slow to anger and plenteous in hope.

This suffrage amendment was to be a bulwark to the liberties not only of black men but of all men in America; it was directed not only against the "Black Laws" of the South but against political and civil slavery everywhere in the nation. It is interesting to note that of the states who were members of the Union up to 1865, only five can be listed in the honor roll of those who have never discriminated against the Negro voter: Maine, Massachusetts, New Hampshire, Rhode Island and Vermont.

The constant question raised by these discriminating laws is: What is a Negro? When are we going to discriminate against a fellow, we must be careful and definite in pointing him out. And so each set of discriminating laws contains its own definition of the word *Negro*, and the definitions have differed widely. At first in some parts of the North the Negro was defined as any person who was *visibly* colored. It is plain, however, that if the matter is left to the eyes, millions of American "Negroes" will have to be taken into the Caucasian race,—and so most of the state legislatures reduced their definition to the finer discriminations of mathematics. These mathematical definitions vary all the way from one fourth of the blood of the black man to a mere one sixteenth; but some laws of the gallant South go so far as to say that if one has even one drop of Negro blood in his veins he is a Negro. Thus it is seen that "the Negro," so far as the United States are concerned, is an arbitrary creature of law and includes within its scope hundreds of thousands of people who by every law of God and nature and reason are members of the Caucasian race, principally Anglo-Saxons. For whatever the

legal definition, it is the common practice in the United States to class as Negroes all persons known to have any part of Negro blood. The white American therefore ascribes the same potency to Negro blood which he ascribes to the blood of Jesus Christ,—that it only takes one drop "to make you whole." The statement needs no proof that there are thousands of people in America who are related to the Negro and do not know it, and others who know it but also know that its acknowledgment would not increase their comforts in life.

It was especially necessary to define the term *Negro* when the intermarriage laws were being considered. These queer laws have always had the support of the vast majority of white people, wherever the Negro has become a considerable part of the population, and especially after the Negro was freed. I call them "queer laws" because they always, in spirit and in effect if not in letter, tend to make the naturally honorable relation of marriage a worse crime than the naturally dishonorable practice of illicit intercourse,—which abuse, however, is practiced chiefly by the men of the stronger against the women of the weaker group. For this illicitness there is in practice no punishment, while the sure penalties of intermarriage range all the way from a fine of one hundred dollars to ten years in the penitentiary,—and the danger of still more horrible extra-legal penalties. There could be but one result of thus outlawing decency and tolerating indecency,—of putting honor under the foot of dishonor,—and that result has been attained in the United States: namely, millions of interracial illegitimates, and some admixture of Caucasian blood in at least nine-tenths of the American Negro group.

Such is the American group against which these discriminating laws have directly and indirectly aimed. In the historic decade (1860 to 1870) many forms of discrimination and distinction began to appear in the laws of

the South: in public travel, in the courts and in the matter of the suffrage. In 1865 and 1866 "Jim Crow" laws were passed in Florida, Mississippi and Texas, but not in the other states until 1881 when Tennessee started the new era of "Jim Crow," which has since overrun the whole South and threatens, as did slavery itself, to invade the North. Is it not queer that this passion should have gained such headway so long after slavery? It would seem that the more the Negro advances in education and refinement, the less acceptable he becomes to a large number of white people. In North Carolina or South Carolina a Negro may be taken into the white people's car if he be a criminal or a lunatic; but if he be a gentleman and a scholar, it will be a serious offense against earth and heaven, subject to heavy fines,—and when his train reaches Georgia, even the conductor may be fined one thousand dollars! This race distinction on the cars serves no useful, honorable purpose which classified passenger tickets would not serve. But of all the humiliation, wrong and robbery possible against a free people, the devil and the Sicilian tyrants working together could never have devised a more ingenious scheme than the "Jim Crow" car.

As to the courts. Until 1870 the laws of Iowa forbade the Negro to practice law; many states sought to invalidate or restrict the testimony of a Negro witness against a white person; and most reluctantly of all has any state conceded the Negro the right to be a juror, even where both parties to the suit are Negroes. In law and in theory the Fifteenth Amendment, March 30, 1870, repealed all statutes and nullified all constitutional clauses discriminating against people on account of race, color, or previous condition of servitude, but in practice in the United States the Negro is still handicapped as a lawyer, discredited as a witness and almost universally excluded from juries. This is queer again in the face of the almost

unanimous testimony of the courts to the effect that the Negro juryman is more inclined to convict a real Negro criminal than is the white juryman.

The Reconstruction constitutions of the South, in 1868 and 1869, following the Fourteenth Amendment, gave the Negroes the ballot. It is needless to say that this was not the will of the white majority. And it must always be said of these Reconstruction governments that, whatever faults they may have had, they made the first, and up to the present time the *last* serious and straight-going efforts to establish real democratic-republican organization in the South. In this era the Congress of the United States was in the hands of the friends of freedom, and in 1866 the Negro was given the ballot in all the territories of the United States. On June 8, 1867, the Congress gave the ballot to the Negroes of the District of Columbia, over the President's veto and against the will of the white inhabitants. In a popular vote on the proposition the city of Washington returned 6521 votes against enfranchising the blacks and 35 votes for it; while Georgetown returned the interesting figures of 812 votes against the proposition, and for it one vote. This record of fifty years ago is sufficient to indicate what would be the conditions in Washington, D. C., if it were left to its own devices.

Such are the facts of obstinate resistance to the Negro's actual freedom, which brought the friends of freedom in Congress rather slowly around to the necessity of adopting the Fourteenth, and when that failed, the Fifteenth Amendment. I repeat that if, after the passage of the Thirteenth Amendment, the legislatures and courts and other creatures of the popular suffrage had shown a genius for doing justice to the Negro, it is likely that his friends in Congress would have forgotten him entirely, that the two subsequent Amendments would not have been proposed and that he would have been left outside of the Constitutional pale of citizenship indefinitely.

The Thirteenth, Fourteenth and Fifteenth Amendments put the enemies of freedom successively on trial and each time they failed. Yea, even against the decree of the Fifteenth Amendment have they defeated democracy by indirection and duplicity. If the aim of the Fifteenth Amendment should be finally defeated, it would be the ultimate failure of democracy,—but there are late indications that in the end it will not fail. And of all the many-angled struggles which the colored people are supporting in this country for their advancement and ultimate security, the central aim of every fighting line should be full-fledged citizenship.

There is no doubt about the truth of the plain statement that the Negro race in the United States of America does not get a "square deal." But we observe frequent efforts to minimize the appearance of the great wrong by the ambiguous statement that it is "natural" under the circumstances. I call the statement ambiguous, because in one sense of the word every fact of life and history is *natural*: all virtue and vice, lust and love are natural. Many natural things are very undesirable, and fortunately some of them are not indestructible or unalterable. It may be natural for the white race to disfranchise, "Jim-Crow" and burn Negroes, but the Negro is *naturally* opposed to that procedure. Is it not natural for the victim to be uncomfortable under these things, to complain against them, to organize and fight them? The naturalness of injustice, if it be natural, does not make it one whit more just. It is natural, or at least it is historic, that men will rob and commit murder and bastardy—but there seems to be something in man which is higher than nature and which fights against these things.

The same sort of fallacy in reasoning is resorted to when the effort is made to palliate the wrongs done in one section by stating the fact that the same or similar wrongs have been done, are being done or will be done to the Negro in other sections or eventually in all sections of the United States.

What on earth has this to do with the wrong, except to make it more horrible? Does it justify wrong to show that other people did it, do it or may do it? If so, then sin itself ought to be the fairest thing in the world, for all men in all ages and all countries have committed it. The poor sinning South pains-takingly points out and tabulates every single instance of its own wrongs against black men which can be found repeated in the North,—and when the North slips from virtue in the same path, it cries out Pharisaically that such horrors are common or even popular in the South. If mere ubiquity justifies, remember that the devil's work is ubiquitous, too.

Again, I have read books and arguments that sought to minimize the importance of industrial, civic and political discriminations against the Negro by saying not only that these practices are "not confined to any section of the country," but also that such-and-such an evil did not even "originate" in the South. We are told with great unction that Philadelphia and San Francisco once excluded Negroes from street cars altogether, that slavery originated in the commerce of the North, and that Jim-Crowism was first met in Massachusetts. I have heard that the devil was first met in the Garden of Eden, but he is none the less the devil. And as to origin, who cares where the smallpox or the yellow fever originated? It is their nature, not their origin, which makes them horrible.

There is really no room for one section to boast or to proudly accuse the other. So far as the Negro's experiences go, both sections need to improve perhaps in their ideals but certainly in their practices respecting democratic liberties and human brotherhood. Let the Negro and his friends realize that the Fourteenth and Fifteenth Amendments to the United States Constitution represent not a backward step but a stride forward in civilization, and that they were fostered and ratified, not for the sake of the

temporary burden which they may have put upon the white race in the South, but for the benefit of all races, at all times, in all America.



John W. Cromwell. The American Negro **Bibliography of the Year**

The following resolution adopted at the last meeting is self-explanatory: "That the Academy publish a list of books, pamphlets, magazines and newspaper articles bearing on the Negro Question, with appropriate comment." A letter sent to the Library of Congress brought from the Chief Bibliographer the following reply: "Titles of books relating to the Negro may be found by means of the Cumulative Book Index, published monthly; articles in magazines, etc., are listed in the Readers' Guide to periodical literature and its supplements, and in the annual magazine subject index; legal literature is indexed in the index to legal periodicals and the literature of medicine in the Index Medicus. These publications are all subject indexes and to approach the matter from the side of Negro authorship it would be necessary to start with some such book as "Who's Who of the Colored Race," which would enable the compiler to pick out the Negro authors. It would then be necessary to go through the indexes to see whether these authors had published anything during the current year. A source of additional titles," continues the letter, "would be the periodicals devoted to the interests of the Negro race. These frequently note pamphlets, privately or obscurely printed books which do not get into the regular lists."

This reference to "Who's Who," a book just issued, shows that the Academy is beginning this work at a very propitious time. One year ago "Who's Who" was only a prospect; now it is a realization, the most

important this year in this field of bibliography. Its price, \$6.00, may restrict its circulation to public libraries, colleges and universities until some worthier publication appears to take its place by the side of similarly named publications which include leaders of thought and action the world over.

Scarcely less important is the Negro Year Book, by Monroe N. Work, in charge of Division of Records and Research at Tuskegee. This is an annual encyclopedia of the Negro, for its scope includes the population of the earth by races, the periodicals published by Africans, "where black men govern," Negroes and Spanish Explorers, Negro Slavery in Colonies and in States, Abolition, Agitation, Slavery and Religious Denominations, Slave Insurrections, the Underground Railroad, Civil Status, Civil and Political Rights, Negro Soldiers, The Church, Education Before and Since the Civil War, Arts, Occupations, Inventions, Agriculture, Crime, Health, Population, National and Fraternal Organizations, Social Settlements, Periodical publications and bibliographies pertaining to the Negro. In no other publication of more than four hundred pages is so much information assembled. The price, 35 cents, should warrant its circulation wherever there is found school, college or church, student or professional man who affects a serious study of our relative conditions and their adaptation to the broader ones of country and civilization.

"The Negro," by W. E. Burghardt Du Bois, Ph. D., No. 91 in the Home University Library of H. Holt & Co., New York, traces in twelve chapters the evolution of the race from Ethiopia and Egypt, from its original habitat, from the Cross and the Crescent to the period when the power and the influence of the race were generally recognized, up to the rise of the slave trade, with its blighting effect on conditions in the New World, and the introduction of the Negro Problem in the United States. Suggestions for further reading follow. An index and maps add to its adaptation and value.

"Education of the Negro Before 1860," by Carter G. Woodson, Ph. D. (Macmillan), embraces the results of an intensive study of educational conditions prevalent in the United States from Colonial days to the Civil War. The influence of the Quaker, the Jesuit and the Abolitionist is traced to its fruitage, contributory to the laws which gave the public school system in the South. This book deserves to be consulted by the investigator and the student.

"The Black Man's Burden," by William H. Holtzclaw, principal of the Utica (Miss.) N & I. Institute for the training of colored young men and women, is also a book of the year. The introduction is written by Booker T. Washington. It tells the story of the establishment of a school in the black belt of Mississippi hardly less thrilling though on a smaller scale than that of Tuskegee itself, of which the author is a graduate.

Among publications of a sociological nature are "Colored People of Chicago, Ill.," L. H. Bowen; "Industries Among Negroes in St. Louis," by W. A. Crossland; "The Negro as a Dependent, Defective and Delinquent," by C. H. McChord; "Urban Conditions in Harlem," by E. F. Dycloff (Outlook, 108:949-54); ditto, by E. D. Jones (Outlook, 109:597); "Manual of Freedmen's Progress," by Francis H. Warren, Secretary of Freedmen's Progress Commission. This volume of 372 pages was authorized by Act 47, Public Acts of Michigan, 1915.

Political conditions of the Negro Problem are discussed in the "Aftermath of the Civil War," by Powell Clayton; "Political History of Slavery," by J. Z. George; "Studies in South: Parties and Politics of Georgia," by C. M. Thompson; "President Lincoln's Attitude," by H. W. Wilbur; "Police Control in South Carolina," by H. M. Henry; "Slavery Early Heritage of the South"; "America's Greatest Problem," R. W. Shufeldt.

Though all these are white authors, they are in an objective sense inclusive in an American Negro Bibliography.

"Negro Wit and Humor," by M. F. Harmon; "Mexico as an Asylum for the Negro," by O. M. Donaldson; "Morals and Manners Among Negro Americans," by Dr. W. E. B. Du Bois are other titles that reflect current thought.

When we invade the realm of the magazine, the newspaper or other periodical we find a variety of topics and different, phases of the same general subject. The range discussed in the magazine intensifies popular thought to a greater degree than the reading of books by the relatively smaller number of individuals.

"Thinking White Down South," in Outlook 111:9-10, does not on its face suggest its pertinence to this question.

"My View of Segregation Laws," by Booker T. Washington, in New Republic, 51:113-14.

The Negro Exposition at Richmond is given greater prestige in the Review of Reviews (52:85-8) than elsewhere. "The Country's Attitude Towards the Negro," by Oswald G. Villard, in Nation (99:788-40), and the same publication (100:187-8); the conferring of the Spingarn medal to E. E. Just, member of this Academy; "The Education of the Mind of the Negro Child in School and Society" (1:357-60), and "The Southern Tribute to a Negro," in Dial (59:409-10).

"Segregation and the Vote" embraces more than a third of fifty titles not otherwise mentioned. The recent opinion of the United States Supreme Court dealing with what is popularly known as the Grandfather clauses of Southern constitutions and statutes, is discussed in 8 Law and Bankruptcy, 8:236-6. The Literary Digest (Vol. 15:5) gives a symposium on the subject. The Nation prophesies the end of the Negro politically in 100 years

(100:443 of April 12, 1915). The Independent on the other hand (Vol. 88:3-4), sees the wrong of these clauses righted. The Outlook in 110:486-7 (June 30, 1915), gives another view.



Other ways of discrimination by which the purpose of the Fifteenth Amendment may yet be defeated will be found in "Everybody" (33:251-2). "The South and the Negro Vote" forms the title of an elaborate article in the North American Review, by J. C. Hemphill (202:213-19), while "Our Debt to the Negro" is the theme in Miss. R. 38:772. Sociological features, Homes and Housing, as a general proposition, is considered in Survey, 34:67, 158-9; Business Men, in 34:550; and Loosening of Louisiana, in 34:266-9. Titustown, a new community near Norfolk, Va., is given special notice in 34:531, and B. T. Washington, in Conference, Charities and Correction, 1914:121-7.

The Separate Coach Statutes and Their Constitutionality are discussed in Central Law Journal, 43:44 (January 15, 1915); 18 Law Notes, 182 213 (January 7, 1915); 20 Va. Law Register, 781-785 (February 15, 1915). These will tend to such race discrimination as to affect Civil Rights, and as such are treated in 50 Nat. Cor. Reg., 595.

"The Saloon as a Place of Public Amusement" is brought under review in 49 Amer. Law Review, 131. "Segregation: A Burning Question in

Southern Social Adjustments," is made the subject of an article by Philip A. Bruce, the well-known Southern author, in Hibberts Journal, 13 V. 867-86. B. F. Benson, in Va. L. Reg. n. s. 330-356, treats the local segregation ordinances. Their application to rural Southern communities is the theme in Survey, 33:375-7. The constitutionality of these ordinances is briefly considered in 13 Mich. Rev., 599-600; in Harper's Weekly, 59:620, 1D. and in New Republic, November 22-29, 1915. "The Roots of the War in the Race Question" is a very illuminating article by W. E. B. Du Bois in the Atlantic Monthly for May.



Three notable books, the product of the year 1915, are deserving of special mention. They are all devoted to Negroes of the Eighteenth Century, and are the outcome of the activities, the enterprise and the research of the Twentieth Century, and that by white Americans. The titles are (1) "Phillis Wheatley (Phillis Peters) Poems and Letters: First Collected Edition," edited by Charles Fred Heartman, with an appreciation by Arthur A. Schomburg, 112 pages. Ben Day paper, 50 on Fabriano hand-made paper, and 10 on Japan vellum.

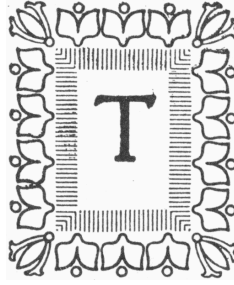
(2) "Phillis Wheatley (Phillis Peters): A Critical Attempt and a Bibliography of Her Writings," by Charles Fred Heartman; 99 copies of this were printed by the author on Alexandra Japan paper. There are 50 pages in

this bibliography, from which we learn that there are 43 titles of different editions of Phillis Wheatley's poems. The forty-third is that of six broadsides relating to Phillis Wheatley, with portrait and fac-simile of her handwritings; 25 copies of this were printed for the same publisher. They consist of four pages and eight productions on eight leaves.

The last (3) item is certainly the most interesting. It flashes the name of Jupiter Hammon, a Negro belonging to Joseph Lloyd, of Queen's Village, on Long Island, now in Hartford. The title is "Jupiter Hammon: American Negro Poet. Selections From His Writings and a Bibliography." By Oscar Wegelin, with five fac-similes; 99 copies were printed for Charles Fred Heartman, New York, 1915. Jupiter Hammon was the first member of his race to write and publish poetry in this country. One of his poems was printed before Phillis Wheatley had written her first poem.

This bibliography is slightly connected with that of books issued before the present year, such as "Negro Culture in West Africa," by George W. Ellis, 290 pages; "The Haitian Revolution From 1791 to 1804," by T. G. Steward, 292 pages; "The Facts of Reconstruction," by John R. Lynch, 326 pages; "Out of the House of Bondage," by Kelly Miller, and "The Negro in American History," by John W. Cromwell, 296 pp. which have found places in some of the principal public libraries of the country.

"Redder Blood," by William M. Ashby, published by the Neale Publishing Company, is described as a novel which, written in literary English and not in the jargon known as Negro dialect; a story told for the sake of the story and not a treatise under disguise. Its author, a Negro, is a graduate of Yale College.



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